

REFERENCE NO. _____

CONTRACTOR AGREEMENT

THIS AGREEMENT REPLACES AND SUPERSEDES ANY AND ALL PREVIOUS AGREEMENTS, UNDERSTANDINGS, AND CONTRACTS BETWEEN THE COMPANY AND CONTRACTOR REGARDING THE SUBJECT MATTER HEREOF, IF ANY. AFTER EXECUTION OF THIS AGREEMENT, THE SERVICES RELATIONSHIP BETWEEN THE COMPANY AND CONTRACTOR WILL BE GOVERNED BY THE TERMS OF THIS AGREEMENT.

This Contractor Agreement (this “Agreement”) is entered into as of the “Effective Date” set forth in the signature page, by and between the undersigned company (“Company”) and the undersigned contractor (“Contractor”). Company and Contractor may be referred to individually as a “Party” and collectively as the “Parties.”

RECITALS

- A. Contractor owns, controls, leases, rents, or otherwise has a possessory right in equipment suitable for providing transportation services.
- B. Company is a FMCSA/DOT-registered motor carrier. Company may also, for certain loads, act as a “fleet operator” under another authorized motor carrier’s operating authority (as described below).
- C. The Parties desire that Contractor provide transportation services to Company from time to time, and that Contractor lease the Equipment (defined below) to Company for those services, to the extent required by Applicable Law.

For good and valuable consideration, the receipt and sufficiency of which are acknowledged, the Parties agree as follows:

1. **DEFINITIONS.** For the purposes of this Agreement, the following terms shall have the following meanings: “Additional Escrow Amount” means any escrow amount required by Company in addition to the base escrow amount, including amounts required in connection with Contractor’s engagement of Subcontractors, or substitution or addition of Equipment, as set forth in Schedule C; “Affiliate” means, with respect to any Person, any other Person that directly or indirectly controls, is controlled by, or is under common control with such Person, and includes the officers, directors, shareholders, members, managers, partners, employees, and agents of such Person and of each entity that controls or is controlled by such Person; “Applicable Law” means all federal, state, and local laws, rules, regulations, and lawful orders applicable to the Parties or performance under this Agreement, including the Federal Motor Carrier Safety Regulations (“FMCSRs”), the Interstate Commerce Commission Termination Act, and 49 C.F.R. Part 376 (Truth-in-Leasing), as applicable; “Company Policies” means Company’s written onboarding, safety, compliance, and standard operating procedures (“SOPs”), and any customer/broker/consignee requirements communicated by Company to Contractor for a particular load, as updated from time to time in accordance with this Agreement; “Contractor Representative” means Contractor and any Driver, employee, agent, subcontractor, provider, or other person acting for, through, or under Contractor in connection with performance under this Agreement; “Driver” means each individual who operates the Equipment or otherwise performs driving services under this Agreement, including Contractor if Contractor is an individual; “Equipment” means the equipment described in Schedule A (and any amended Schedule A), together with any accessories identified in Schedule A; “Person” means any individual, corporation, limited liability company, partnership, joint venture, association, trust, governmental authority, or other entity; and, “Schedules” means Schedule A (Equipment Identification), Schedule B (Compensation), Schedule C (Escrow), Schedule D (IFTA Obligations/Tax Reporting), Schedule E (Deductions), Schedule F (Violations), and any other schedules that the Parties may add in accordance with this Agreement.

2. EQUIPMENT LEASED; COMPENSATION

2.1. **Equipment Lease; Schedules.** Contractor leases to Company the Equipment described in Schedule A (the “Equipment”). The compensation for services and additional payment terms are stated in Schedule B. Contractor authorizes the deductions and chargebacks described in Schedule E and any other deductions permitted by this Agreement and Applicable Law.

2.2. **Amendment of Schedules.** Each Schedule may be amended from time to time upon (i) express mutual agreement of the Parties, or (ii) as otherwise permitted by this Agreement, including under Section 25. The Parties acknowledge that amended Schedules may add, remove, or replace Equipment, compensation rates, and deduction/chargeback categories and amounts, including in response to the addition or removal of Equipment or the addition or removal of qualified Drivers engaged by Contractor. Unless expressly stated otherwise in an amendment, the terms and conditions of this Agreement remain applicable to any amended Schedule(s).

2.3. **Statement of Lease.** At all times, Contractor shall keep in the Equipment a copy of the statement of lease or other lease documentation provided by Company reflecting the Equipment (the “Statement of Lease”). Contractor shall not represent to any third party or governmental body that the Equipment is owned by Company. Contractor shall also not misrepresent the existence or effect of Company’s exclusive possession/control described in Section 3 when operating in Company’s service under Applicable Law.

REFERENCE NO. _____

3. **LEASED EQUIPMENT.** Possession of the Equipment is transferred under this Agreement from Contractor to Company beginning on the Effective Date and will continue without disruption or interruption throughout the Term (as defined in Section 16), along with any extensions or continuations permitted under this Agreement, until this Agreement is terminated. To the extent required by the Interstate Commerce Commission Termination Act, the FMCSRs, 49 C.F.R. Part 376, or any other governmental requirement with jurisdiction over the Parties, Company shall, during the Term, be considered to have exclusive possession, control, and use of the Equipment. Company shall assume complete responsibility for the operation of the Equipment during such period, but only to the extent required by such laws, rules, or regulations. The Parties acknowledge that this allocation is intended to comply with Applicable Law and does not alter the independent contractor relationship described in this Agreement. The Equipment identified in Schedule A may not be substituted or augmented without Company's prior written consent and an amended Schedule A. Contractor warrants, represents, and certifies that Contractor owns or has lawful possession of the Equipment and the right to lease it to Company for the purposes of this Agreement, and that the Equipment meets all Applicable Law safety requirements and standards. Contractor will maintain the Equipment in safe operating condition and in compliance with Applicable Law and Company Policies.

4. **SERVICES.** Contractor agrees to provide transportation/trucking services as Company may, from time to time, request Contractor to provide. Company does not require Contractor or any Contractor Representative to perform services or be available to perform services at specific times or according to a schedule for several hours specified by Company. Pickup or delivery times specified by a customer, broker, consignee, or other party requesting services from Company shall not be deemed "specified" by Company. Contractor may, in its sole discretion, refuse to accept any work offered by Company. Contractor shall not be required or expected to grant Company any preference or priority in performing Contractor's services. Likewise, Company is not required to give Contractor any preference or priority in offering work to Contractor. Once Contractor accepts a shipment/load/trip, Contractor must transport and deliver the shipment as agreed and may not re-negotiate rates or cancel the accepted shipment after acceptance without Company's prior written approval. **If Contractor refuses or fails to complete a load after accepting it, Contractor agrees to a rebooking fee not to exceed \$750.00 per occurrence, in addition to any other remedies available to Company. Multiple rebooking occurrences may result in termination of this Agreement.** Contractor shall comply with Company Policies regarding inspection, pickup, securement, transport, and delivery of cargo, including completion and delivery of bills of lading (BOL) and proofs of delivery (POD). Contractor shall timely submit all documentation reasonably requested by Company for billing, compliance, and settlement.

5. **COMPANY MAY ACT AS CARRIER OR AS "FLEET OPERATOR" UNDER ANOTHER MC CARRIER.** Contractor acknowledges and agrees that Company may, depending on the load/delivery/trip, (i) act as the FMCSA-authorized motor carrier under Company's own operating authority, or (ii) act as a "fleet operator" (its own owner-operator) where Company has an agreement with another FMCSA-authorized motor carrier (the "MC Carrier") (the "Fleet Operator Relationship"). If Company is acting in a Fleet Operator Relationship for a particular load/delivery/trip, Contractor agrees that Contractor does not have, and will not be deemed to have, privity (whether under contract, tort, or any other legal theory) with the MC Carrier by reason of this Agreement, the Fleet Operator Relationship, or Contractor's performance of such load/trip/delivery. Contractor agrees it is not a third-party beneficiary of the Fleet Operator Relationship and will not assert rights against the MC Carrier based on this Agreement. Nothing in this Agreement will be deemed to release the MC Carrier from any obligations that Applicable Law imposes on the MC Carrier as a motor carrier for loads/trips/deliveries operated under the MC Carrier's authority. Contractor acknowledges and agrees that, from time to time, and unless Contractor expressly prohibits or instructs Company otherwise in writing, the MC Carrier may pay any amount(s) due to Contractor or any Driver with respect to Driver's performance of services pursuant to this Agreement directly to the Contractor or Driver. Any such payment by the MC Carrier directly to the Contractor or Driver shall be deemed to have been made by the Company to the Contractor or Driver on the account of, and for the benefit of the Company, and shall not be deemed, in any circumstance, as creating any relationship or obligation between the MC Carrier and the Contractor or Driver. Any payment the Contractor or Driver receives from the MC Carrier in respect of services performed under or pursuant to this Agreement shall be deemed made on behalf of the Company, and such payment shall be treated, for tax and all other purposes, and payment made by the Company to the Contractor.

6. **INDEPENDENT CONTRACTOR STATUS; REPRESENTATIONS**

6.1. **Independent Contractor.** Contractor is an independent contractor. Company shall not be considered the employer of Contractor or any Contractor Representative. Contractor shall determine the method, means, and manner of performing duties under this Agreement, including hiring and engagement of competent and qualified Drivers, subject to this Agreement, Company Policies, and Applicable Law. The Parties elect that Contractor shall be an independent contractor pursuant to 49 C.F.R. § 376.12(c)(4). Contractor and its employees shall not be considered to be employees of Company under the provisions of any federal, state, or local laws.

6.2. **Taxes; Premiums; Assessments.** Contractor agrees to be responsible for and pay any and all social security, unemployment, occupational accident and/or workers' compensation premiums and deductibles (as applicable), income, and other federal, state, or local taxes and fees assessed, demanded from, or levied against Contractor or any Contractor Representative. Contractor shall be, and under no circumstances will Company be, responsible for the withholding, payment, and reporting of any payroll taxes for Contractor or Contractor's employees. Contractor shall defend and indemnify Company from and against any assessment, levy, or demand for payment of such taxes or assessments to the extent arising from Contractor's obligations and status under this Agreement.

REFERENCE NO. _____

6.3. No Authority to Bind Company. Contractor and Contractor Representatives have no authority to bind Company with respect to contracts or representations, or to represent Company before any court or governmental or regulatory authority without Company's express written authorization. Neither party is the agent of the other, and neither party shall assume the right to bind the other by contract or otherwise, except as specifically provided herein.

6.4. Business Enterprise Factors; Investment; Risk. Contractor represents and warrants that Contractor operates as an independent business enterprise, has a substantial investment of capital in Contractor's operations (including the Equipment and engagement of Contractor Representatives), bears the potential for profit and loss, and assumes financial and operational risk in Contractor's operations. Contractor makes services available to the public or business community on a continuing basis. Nothing in this Agreement prohibits Contractor from entering into contracts or otherwise driving for other authorized motor carriers, except as limited by Applicable Law during periods when the Equipment is in Company's exclusive possession/control for Company service, provided that no movement may be made for any other company until the Equipment has been de-identified in accordance with this Agreement's termination provisions.

6.5. Individual Contractor Representation. If Contractor is an individual, Contractor represents and warrants that Contractor intends to operate a trucking enterprise and is not providing services as an employee or driver of Company.

6.6. Drivers Are Contractor's Subcontractors. Each Driver shall be deemed a subcontractor and personnel of Contractor, and not of Company. Contractor shall cause all Drivers to comply with this Agreement and Applicable Law, and Contractor is responsible for all acts and omissions of Drivers. No Driver will be in privity with Company. Any violation of this Agreement or any Company Policy caused by a Driver shall automatically be deemed a violation by Contractor. Contractor shall be solely responsible for the direction and control of its subcontractors and employees in fulfilling its obligations under this Agreement, including load selection and rejection, selection, hiring, directing and training of its employees, compensating its employees, and selection of hours and working conditions.

6.7. Subcontractors/Providers. Contractor may subcontract any part of its services, including hiring Driver(s) or other providers (each, a "Subcontractor" or "Provider"), provided that before any such Subcontractor performs services for the benefit of Company: (i) Contractor shall cause such Subcontractor to deliver to Company an executed acknowledgement/waiver/release in the form provided by the Company, and (ii) Contractor shall cause the Subcontractor to review and provide written acknowledgement of and acceptance of the Company Policies then in effect. Contractor's subcontracting does not relieve or otherwise affect Contractor's obligations under this Agreement. If Contractor engages any Subcontractor, Company may require an Additional Escrow Amount as set forth in Schedule C.

6.8. Indemnity for Driver/Subcontractor Allegations. Contractor shall defend and indemnify Company and each of its Affiliates from and against any claims, demands, or proceedings by any Driver or Subcontractor alleging that Company or any Affiliate is an employer or joint employer, or otherwise liable to such Driver/Subcontractor for wages, benefits, reimbursement, expenses, or similar employment-related obligations, to the extent arising out of Contractor's relationship with such Driver/Subcontractor or Contractor's breach of this Agreement.

6.9. Contractor Organization and Authority. Contractor represents and warrants that: (i) Contractor is duly organized (if an entity), qualified to do business, and in good standing in each jurisdiction where such status is required for performance under this Agreement; (ii) Contractor has full power and authority to enter into this Agreement and perform its obligations; (iii) the execution and delivery of this Agreement have been duly authorized; and (iv) execution, delivery, and performance by Contractor and Contractor Representatives will not violate Applicable Law or conflict with Contractor's obligations under third-party agreements.

6.10. Contractor Determination Rights. Contractor shall determine the following: (i) when a load is to be picked up; (ii) who is to load the vehicle; (iii) who, among qualified employees, shall operate the vehicle; (iv) setting of wages for Contractor's employees; (v) how the vehicle is to be loaded; (vi) selection of routes; (vii) rest stops and breaks, except as mandated by regulation; (viii) location of repairs; (ix) selection of fuel and maintenance locations; (x) hiring of laborers or lumpers; and (xi) working hours, except as mandated by regulation.

7. DRIVER QUALIFICATION. Contractor shall provide competent professional drivers who meet Company's minimum driver qualification standards and all of the requirements of the DOT, including but not limited to, familiarity and compliance with state and federal motor carrier safety laws and regulations. As part of the driver qualification process, Contractor, and Contractor's drivers, shall authorize Company to access applicable driver files, Driver Safety Measurement System ("DSMS") safety scores, and any other driver data or information available as part of DOT's CSA Driver Information Resource System ("DIRS"). The Parties agree that Company shall have the right to disqualify any driver provided by Contractor in the event that the driver is found to be unsafe, unqualified, unfit, uninsurable, or marginal, pursuant to federal or state law or the criteria established by the DOT's CSA DIRS, in violation of Company's minimum qualification standards or any Company Policies, or in violation of any policies of Company's customers.

8. CONTRACTOR'S RESPONSIBILITIES. Contractor shall perform, and shall cause each Contractor Representative to perform, all duties under this Agreement in a safe, professional, competent, and workmanlike manner and in compliance with Company Policies and Applicable Law, and at the earliest time practical and permissible under DOT rules and regulations, after the freight is tendered for movement. Unless expressly otherwise set forth in this Agreement, any Schedule, and any Company Policy, Contractor shall pay for and be fully responsible for any and all costs, fees, and expenses incurred in connection with ownership, use, operation, licensing, and maintenance of the

REFERENCE NO. _____

Equipment and performance of services, including taxes, licenses, insurance, fuel, fuel taxes, permits, base plates, tolls, trailer rental, trailer damage, trailer insurance, ferries, detention (unless otherwise agreed), tickets, citations, loading and unloading costs and fees, empty mileage (deadhead) operations, and any unused portions of such items. Contractor shall pay for and provide all labor, materials, and equipment required to perform duties under this Agreement, including all amounts owed to any Subcontractor. Contractor is responsible for all wages, payroll taxes, and other payments owed to Drivers and Contractor Representatives. Unless required by Applicable Law, Contractor will be responsible for cargo claims related to loads transported by Contractor under this Agreement to the extent caused by Contractor or any Contractor Representative, subject to Company Policies and customer/broker requirements communicated to Contractor. Upon termination of this Agreement for any reason, Contractor shall return to Company all trailers or other equipment assigned to Contractor by Company, and all Company-owned/provided property (including placards/decals, devices, fuel cards, keys, permits, and other items) in accordance with Company Policies. Unless Company specifies a different location in writing, Contractor shall return such items to Company's terminal or a location designated by Company within forty-eight (48) hours after termination. Contractor shall be solely responsible for all costs incurred in returning or arranging return. If Contractor retains Company equipment or property beyond the required return deadline, Contractor agrees that Company will be harmed in ways that are difficult to precisely measure, and Contractor therefore agrees to pay the failure to return Equipment charges set forth in Schedule E and/or Schedule F, as liquidated damages. The foregoing liquidated damages are exclusive of, and do not limit or substitute for, any repossession, towing, recovery, transportation, or storage fees, charges, or costs that Company incurs as a result of Contractor's failure to timely return Company equipment or property, all of which Contractor shall also be solely responsible for, in addition to any other amounts owed under this Agreement and any other documented costs of recovery.

9. COMPANY SAFETY AND COMPLIANCE POLICIES; GENERAL FMCSA/DOT COMPLIANCE

9.1. Acknowledgement; Purpose. Contractor acknowledges and agrees that Contractor has received or has been given access to Company Policies and has had an opportunity to review them prior to execution of this Agreement. Contractor understands and agrees that Company Policies are adopted for safety and security, compliance with Applicable Law, and uniform servicing of customers, brokers, and consignees, and that Contractor's compliance does not create an employer-employee relationship between Company and Contractor or any Contractor Representative.

9.2. Company Right to Amend Policies. Company shall at all times have the right to amend, add, or remove Company Policies in Company's sole discretion upon written notice. Any such change will not affect actions or omissions of Contractor prior to the effective date of the change, nor will it affect loads/deliveries accepted by Contractor prior to the effective date of the change, except to the extent required by Applicable Law for safety or regulatory compliance. The terms of this Agreement take precedence over Company Policies. In the event of a conflict between an express term of this Agreement and a Company Policy, the express term of this Agreement shall govern. Contractor's and each Contractor Representative's compliance with Company Policies is a material obligation of Contractor.

9.3. FMCSA/DOT Compliance Certification. Contractor certifies and warrants that all operations performed by Contractor and any Driver will be in full compliance with the FMCSRs, including, as applicable and without limitation, Part 390 (General), Part 391 (Qualifications of Drivers), Part 393 (Parts and Accessories Necessary for Safe Operation), Part 395 (Hours of Service), Part 396 (Inspection, Repair and Maintenance), and Part 397 (Transportation of Hazardous Materials; Driving and Parking Rules), together with all other Applicable Law. Contractor and its employees expressly agree to remain in full compliance with all regulation guidelines outlined under 49 C.F.R. §§ 300–399, including all subparts and appendices.

9.4. Records; Reporting; Audits. Contractor shall immediately report all accidents from the scene (or as soon as safely possible) to Company and shall timely provide to Company all physical examinations, certificates, medical cards, electronic logs/log sheets, DVIRs, accident reports, drug/alcohol testing documentation as required by Applicable Law, and all other required reports, documents, and data reasonably requested by Company for compliance, safety, billing, auditing, or customer requirements.

9.5. Weight and Traffic Laws. Contractor shall comply with all state weight laws and shall not accept loads in excess of limits allowed by each state through which the Equipment may travel while in the service of Company. Contractor shall comply with all applicable traffic and parking laws while operating.

9.6. English Proficiency. Each Driver will be proficient in reading, speaking, and writing the English language to the extent necessary for safe operation, compliance, and communication with shippers, consignees, law enforcement, and Company.

9.7. Residency and Right to Work in the United States. Contractor represents and warrants that (i) if Contractor is an individual, Contractor is a lawful resident of the United States and has the right to work in the United States, and (ii) each Driver and each Contractor Representative performing services is legally authorized to work in the United States. Company may require evidence of a Driver's and/or Contractor's residency and right to work in the United States, and Contractor shall promptly provide such evidence upon request.

9.8. Equipment Condition and Inspections. All equipment furnished herein shall be in compliance with the rules and regulations of DOT and various states in or through which Company operates. The condition of Contractor's equipment for the duration of this Agreement shall meet or exceed all federal and state and Company regulations presently in force or enacted in the future. Company has the right to

REFERENCE NO. _____

inspect the equipment for compliance with standards, and such inspection shall occur not less than once every ninety (90) days. All maintenance records concerning the equipment shall be forwarded by Contractor to Company at the end of each calendar month during which this Agreement is in effect. Contractor shall also have the equipment inspected at least annually in accordance with 49 C.F.R. § 396.17.

9.9. **Special Enforcement Provision – Crash and Citation Reporting.** If Contractor is involved in a DOT-reportable collision and receives a citation, Contractor is REQUIRED to report that citation to Company IMMEDIATELY UPON ISSUANCE. The issuance of a citation when Contractor is involved in a DOT-reportable collision is the triggering event for the required Drug and Alcohol Testing protocols that Company must follow. If Contractor FAILS to make known the issuance of a citation (including warnings), Contractor will not receive the benefit of doubt and will be considered to have interfered with the required Drug & Alcohol testing protocols and will be reported to the FMCSA Drug and Alcohol Clearinghouse (“DACH”) as a “positive” result due to being declared as a refusal-to-test violator. Contractor must submit all paperwork received at the scene of a collision to Company immediately so the appropriate steps can be followed and/or initiated by Company.

10. **FINANCIAL RESPONSIBILITY.** To the extent required by any governmental authority or any Applicable Law or regulation applicable to the services provided by Company, Company shall maintain insurance coverage for the protection of the public pursuant to DOT regulations under 49 U.S.C. § 13906 and 49 C.F.R. § 387 for Contractor’s vehicles which are under dispatch to Company, and shall have financial responsibility for each piece of Equipment subject to this Agreement in accordance with Applicable Law, but only while that Equipment is operating in the service of Company (or in the service of the applicable motor carrier authority, as required by Applicable Law). Company will reject uninsured and underinsured motorist coverage where allowed and will maintain the minimum underinsured or uninsured coverages in the states where it cannot be rejected entirely.

11. CONTRACTOR’S INSURANCE REQUIREMENTS

11.1. **Required Coverages.** Unless Contractor participates in a Company Insurance Program as described below, Contractor shall obtain and maintain, at Contractor’s expense, the following insurance coverages with insurers satisfactory to Company: (a) Contractor agrees to carry bobtail/deadhead (non-trucking) liability insurance coverage with respect to public liability, bodily injury, and property damage with a combined single limit of not less than \$1,000,000 per occurrence for each piece of Equipment listed in Schedule A; (b) if the Contractor does not own the Equipment, Physical damage coverage for the Equipment with deductibles not exceeding \$2500 per occurrence, unless Company approves a higher deductible in writing; (c) If Company requires Contractor cargo coverage for particular operations, Contractor will maintain cargo coverage with limits of \$1,000,000 per occurrence (or such other limits as Company specifies in writing for particular customers/commodities). If Company maintains cargo insurance, Contractor acknowledges Company may charge back deductibles, uncovered losses, or claim-related costs to the extent permitted by the Agreement, Schedule E, and Applicable Law; and, (d) Contractor will maintain occupational accident coverage and/or workers’ compensation coverage for Contractor and all Drivers/Contractor Representatives where required by Applicable Law. Company does not provide workers’ compensation coverage for Contractor or Drivers except as expressly stated in a written program election document, if any. Contractor specifically agrees to obtain either workers’ compensation insurance or occupational accident insurance for Contractor and workers’ compensation coverage for all his/her/its employees, and Contractor hereby agrees to indemnify and hold Company harmless from any and all claims and demands thereof.

11.2. **Endorsements; Certificates; Notice of Cancellation.** Contractor will name Company (and Company’s Affiliates as reasonably requested) as additional insureds on liability policies to the extent permitted by law and commercially available, except workers’ compensation policies. Liability policies will be primary and non-contributory to Company’s insurance, to the extent permitted by law and commercially available. Policies will include a waiver of subrogation in favor of Company to the extent permitted by law and commercially available. Policies will provide that Company receives at least thirty (30) days’ prior written notice of cancellation or material reduction in coverage, to the extent permitted by law and commercially available. Contractor will provide certificates of insurance (and endorsements upon request) before Contractor begins service and upon renewal or change. Contractor authorizes Company to verify coverage directly with the insurer or agent.

11.3. **Contractor’s Failure to Maintain Required Insurance.** If Contractor fails to maintain required coverage or fails to provide acceptable proof of coverage, Company may: (a) suspend dispatching, (b) require replacement coverage, (c) procure coverage at Contractor’s expense (if available), and/or (d) terminate the Agreement. Contractor authorizes Company to charge back premiums, fees, and related costs for any coverage Company procures on Contractor’s behalf as permitted by Schedule E. Should Contractor fail to obtain any insurance required by this Agreement, Contractor shall indemnify and hold harmless Company from all claims or damages arising out of Contractor’s failure to maintain such insurance.

11.4. **Company Insurance Program.** Company may offer an optional insurance program administered by Company or an Affiliate (the “Company Insurance Program”). Participation is voluntary and subject to eligibility and approval. If Contractor elects to participate, Contractor authorizes Company to deduct premiums, fees, and deductibles from settlements as disclosed in writing or on settlement statements. Company is not an insurer, and Contractor acknowledges that Company is not in the business of selling insurance. Coverage is governed solely by policy terms and underwriting decisions. In no event shall the Contractor be entitled to reimbursement of any premiums, fees, and deductibles paid by the Contractor or otherwise deducted from settlements. Regardless of the terms of the Company Insurance

REFERENCE NO. _____

Program, Contractor shall have no right of subrogation against Company or any insurer under the Company Insurance Program. Contractor waives all rights of subrogation against Company, and in the event of a subrogation action brought by Contractor's insurer, Contractor agrees to hold harmless and indemnify Company.

11.5. Additional Insurance Terms. If Contractor participates in the Company Insurance Program, then (a) upon the occurrence of any loss or damage in which Contractor or any Driver is alleged to be, in whole or in part, responsible for such loss or damage, or (b) upon the occurrence of any loss or damage in which a third party is alleged to be, in whole or in part, responsible for such loss or damage, Company shall not be required to cause an insurance claim to be filed under the Company Insurance Program, or to otherwise indemnify Contractor for any losses, until and unless liability for such loss or damage is finally resolved, including by a non-appealable decision of a court of competent jurisdiction or a written settlement agreement finally resolving liability.

11.6. Contractor Deduction for Insurance. The Contractor may elect to have Company provide insurance coverage required by this Agreement and deduct all costs from the Contractor's settlements.

12. CONFIDENTIALITY. Contractor shall keep confidential and not disclose Company's confidential or proprietary information, including customer identities, rates, lanes, pricing, operating methods, SOPs, and business plans, except as necessary to perform services or as required by law. Contractor acknowledges that the identity of Company's customers, the needs and procedures of Company's customers, and Company's relationships to its customers are among its most valuable assets. Contractor recognizes that use of knowledge gained during the term of this Agreement in competition with Company would be detrimental to Company's business. Contractor agrees not to disclose or utilize this information for a period of two (2) years following the termination of this Agreement. Contractor agrees that a violation of this provision would entitle Company to injunctive relief to prohibit such further violation and that a proper penalty for violation is forfeiture to Company of one-half of all gross revenue earned in violation of this provision.

13. INDEMNITY. Contractor shall defend, indemnify, and hold harmless Company and its Affiliates and their respective officers, directors, shareholders, members, employees, and agents from and against any and all claims, actions, causes of action, disputes, liabilities, damages, losses, fines, penalties, judgments, settlements, and reasonable costs and expenses (including reasonable attorneys' fees and defense costs incurred in responding to third-party claims) arising out of or relating to: (i) the negligence, willful misconduct, or violation of Applicable Law by Contractor or any Contractor Representative; (ii) bodily injury, death, or property damage to the extent caused by Contractor or any Contractor Representative; (iii) cargo loss/damage to the extent caused by Contractor or any Contractor Representative; (iv) Contractor's breach of this Agreement or Company Policies; (v) Contractor's failure to pay wages, taxes, premiums, or other obligations to Contractor Representatives; or (vi) any claims by or on behalf of any Driver, Subcontractor, or Contractor Representative against Company or any Affiliate. Contractor shall cooperate with Company and applicable insurers in investigating and defending claims. Company may, at its option, participate in the defense with counsel of its choosing at its own expense, except to the extent Contractor's indemnity obligation requires reimbursement of third-party defense costs as set forth above.

14. RELEASE OF OFFICERS, DIRECTORS, SHAREHOLDERS, AFFILIATES, AND MANAGEMENT COMPANY.

14.1 To the maximum extent permitted by Applicable Law, Contractor acknowledges and agrees that Contractor will not bring any claim, action, demand, or proceeding of any kind against any Affiliate of Company (including the officers, directors, shareholders, members, managers, partners, employees, and agents of Company and of each entity that directly or indirectly controls, is controlled by, or is under common control with Company) or against the Management Company (as defined below) or any of its officers, directors, members, managers, employees, vendors, contractors, or agents, in connection with, arising out of, or related to this Agreement, the Services, or the relationship between Company and Contractor. CONTRACTOR HEREBY FULLY, FINALLY, AND IRREVOCABLY RELEASES AND FOREVER DISCHARGES EACH OF THE AFFILIATES OF THE COMPANY AND THE MANAGEMENT COMPANY (AND EACH OF THEIR RESPECTIVE OFFICERS, DIRECTORS, MEMBERS, MANAGERS, EMPLOYEES, VENDORS, CONTRACTORS, AND AGENTS) FROM ANY AND ALL CLAIMS, DEMANDS, ACTIONS, CAUSES OF ACTION, OBLIGATIONS, DAMAGES, LOSSES, LIABILITIES, COSTS, AND EXPENSES OF EVERY KIND AND NATURE WHATSOEVER, WHETHER KNOWN OR UNKNOWN, SUSPECTED OR UNSUSPECTED, THAT CONTRACTOR NOW HAS, HAS EVER HAD, OR MAY HEREAFTER HAVE AGAINST ANY SUCH PERSON OR ENTITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, ANY SCHEDULE, THE SERVICES, OR THE PARTIES' RELATIONSHIP, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW. This release shall be binding upon Contractor and Contractor's successors, assigns, heirs, and legal representatives.

14.2 Contractor acknowledges that Company currently engages, and may from time to time engage, replace, or change, one or more third-party management companies (each, a "Management Company") to provide safety, compliance, onboarding, payment processing, settlement administration, and other administrative services to Company, including services relating to the administration and performance of this Agreement and the Company Policies. Contractor understands and agrees that: (a) the Management Company is engaged solely to provide services to Company and acts on Company's behalf in an administrative capacity only; (b) neither the Management Company nor any of its officers, directors, members, managers, employees, vendors, contractors, or agents shall be deemed to be an employee, agent, or personnel of Company by reason of such engagement; (c) neither the Management Company nor any of its officers, directors, members, managers, employees, vendors, contractors, or agents shall have any direct liability to Contractor under this Agreement or by reason of the

REFERENCE NO. _____

relationship between Company and Contractor, and Contractor shall not assert any claim against any such person or entity in connection with, arising out of, or related to this Agreement, the Services, or the Parties' relationship; and (d) Company may change or replace the Management Company at any time, with or without notice to Contractor, and upon any such change all references in communications, policies, or systems to the prior Management Company shall be deemed to refer to the successor Management Company.

CONTRACTOR INITIALS TO SECTION 14: _____

15. **CONTRACTOR OBLIGATIONS FOR CLAIMS.** Contractor shall be responsible to Company, and shall through settlement deduction, escrow/security deduction, or reimbursement to Company, hold Company harmless from all claims relating to any of the following: (a) Loss, shortage, or damage to any cargo transported under this Agreement for which the applicable insurance excludes coverage, for which a deductible applies, or for which the claim exceeds the amount of the available coverage; (b) Damage or loss for whatever reason to the equipment of Company used under this Agreement by Contractor, its agents, servants, or employees; (c) Injury or death to any person, or damage or loss to any real or personal property occurring during the performance of this Agreement for which the applicable insurance excludes coverage, for which a deductible applies, or for which the claim exceeds the amount of the available coverages. Contractor shall immediately report or cause to be reported to Company any accidents, injuries, property damage of any nature, and/or cargo loss, damage, or shortage and as soon as practicable to submit a full and complete written report covering such occurrence; and, (d) In the event Contractor's employees or passengers assert and make recovery under Company's liability policy claims for uninsured or underinsured motorist coverage and to the extent Company is responsible to satisfy a deductible or any portion of the recovery is not paid by insurance coverage, Contractor shall reimburse Company for such payments.

16. **SETTLEMENTS; DEDUCTIONS**

16.1. **Settlement Statements.** Company will provide Contractor a written settlement statement (paper or electronic) for each settlement period in accordance with Schedule B and Applicable Law. The settlement statement will reflect the loads/trips settled for the period, the basis used to calculate compensation for each load/trip, and itemized deductions/chargebacks applied for that settlement period. Contractor authorizes Company to deduct, charge back, withhold, and/or set off amounts described in Schedule E and any other amounts Contractor owes Company under this Agreement, the Schedules, Company Policies, or any written election/authorization executed by Contractor, to the extent permitted by Applicable Law. If the final amount of any chargeback, claim, or loss is not known at the time of settlement, Company may withhold a commercially reasonable estimate and later true-up when the final amount is determined. If Company pays in excess of the amount owed to Contractor, or otherwise miscalculates any settlement amount and pays the same to Contractor, Company reserves the right to recover such excess or miscalculated amount by deducting, charging back, or otherwise reflecting the same on any subsequent settlement(s) of Contractor. Company may, in its sole discretion, split any chargeback, deduction, or other amount owed by Contractor across multiple settlements; provided, however, that the full unpaid balance of any such amount shall be due and reflected on the final settlement issued to Contractor, unless paid in full earlier. If any settlement amount, or any other amount payable to Contractor under this Agreement, is paid by an Affiliate of Company directly to Contractor, such payment shall be deemed a payment made by Company on account of this Agreement, and in no event shall (i) any such payor Affiliate be deemed an obligor of Contractor, (ii) any contract or obligation be deemed created between such payor Affiliate and Contractor by reason of such payment, or (iii) any privity be deemed to exist between such payor Affiliate and Contractor. Contractor acknowledges and agrees that any action taken by a Management Company (as defined in Section 14) in connection with the administration of this Agreement, including the preparation or issuance of settlement statements, the calculation or application of deductions, chargebacks, withholdings, or set-offs, the disbursement of funds, the withholding of amounts pending reconciliation, and any related communications, shall be deemed an action of Company for all purposes of this Agreement, and Contractor shall have no claim or recourse against the Management Company with respect to any such action.

16.2. **Right to Examine.** Contractor acknowledges that rate confirmations, customer/broker contracts, and similar rate-setting documents may be subject to confidentiality and non-disclosure obligations. To the extent required by Applicable Law, Contractor may examine, solely for the purpose of verifying the correctness of a settlement calculation for specifically identified shipment(s), the documents from which rates and charges were computed for those shipment(s). This examination right is limited to the minimum information required to verify the identified settlement(s) and does not permit a general audit of Company's books and records, customer lists, lane/pricing strategy, or other competitively sensitive information. Contractor must submit any request to examine records in writing and must identify: (i) the date of the applicable settlement statement, (ii) the specific load/trip number(s) to be reviewed, and (iii) the specific settlement discrepancy Contractor is challenging. Contractor must deliver the written request within fifteen (15) days after the date of the applicable settlement statement. If Contractor does not deliver a written request that complies with this Section within the fifteen (15) day period, then, to the fullest extent permitted by Applicable Law, Contractor will be deemed to have accepted that settlement statement as final, including all itemized deductions/chargebacks.

16.3. **Method of Examination.** Any examination under this Section will occur only at Company's designated terminal/office during normal business hours, by appointment, and in the presence of a Company-designated representative. Company may redact shipper and consignee names and may also redact broker/customer identifying information and other confidential business information not necessary to verify the settlement for the identified load(s), to the extent permitted by Applicable Law. Unless Applicable Law requires otherwise, Contractor's rights under this Section are limited to inspection/review and do not include a right to obtain copies. Company may prohibit

REFERENCE NO. _____

photographing, scanning, screen-capturing, audio/video recording, or otherwise reproducing reviewed documents. Contractor will keep all reviewed documents and information strictly confidential and will not contact any broker, shipper, customer, or consignee regarding any reviewed document or settlement dispute.

16.4. **No Offset.** Contractor will not offset, withhold, or delay performance (including return of Company property) or amounts owed to Company based on any dispute regarding a settlement, deduction, or rate documentation. Contractor's remedies are limited to the dispute-resolution procedures in this Agreement.

17. **TERM AND TERMINATION.** This Agreement begins on the Effective Date and continues for one (1) year (the "Term"), with automatic renewal following each delivery of freight and the provision of proof of delivery. The acceptance of a load shall be deemed a renewal of this Agreement by Contractor on load-by-load basis, and not renewal of the Term for specific or extended period of time. Any continuation beyond the Term must be evidenced by a written agreement, an amended Agreement, or a continuation permitted by Company under written notice consistent with Section 25. Either Party may terminate this Agreement without cause upon seven (7) days' prior written notice to the other Party. Either Party may terminate this Agreement for material breach by the other Party. Company may immediately suspend dispatching or terminate this Agreement if the Contractor any Contractor Representative has committed, as determined by the Company's sole direction, any of the following: (a) any Contractor Representative (driver) failing a drug test, driving impaired, or otherwise becoming unqualified; (b) the Contractor or any Contractor Representative violates the Professional Conduct Standards; (c) Contractor failing to maintain insurance as required under this Agreement; (d) any occurrence of cargo loss or damage, occurrence of an accident, and/or occurrence of any fraud/theft, regardless of whether any such cargo loss or damage, occurrence of an accident, and/or occurrence fraud/theft is caused by the Contractor any Contractor Representative; (e) refusal to timely report an accident/incident; (f) the commission of any violation(s) set forth in Schedule F; (g) unauthorized use of Company placards/authority; (h) if the Contractor disputes, by written notice to the Company, any amount of the settlement or deductions/charges, and such dispute is not resolved within fifteen (15) days of Contractor's notice to the Company; or, (i) violation of Applicable Law or breach of any term of this Agreement or any Company Policies. Termination of this Agreement does not eliminate obligations that accrued prior to termination or that by their nature survive, including, without limitation, return obligations, confidentiality, indemnity, settlement/deduction rights, and dispute resolution.

18. **BREACH OF AGREEMENT.** In addition to any other rights under this Agreement, upon breach by Contractor, Company may (i) suspend offering loads, (ii) require corrective action, (iii) apply deductions/chargebacks, (iv) draw on escrow if applicable, and/or (v) terminate in accordance with Section 17, subject to Applicable Law. Contractor acknowledges that compliance with Company Policies, maintenance of required insurance, prompt accident reporting, and timely return of Company property are material obligations of Contractor. In the event that either Party violates any term, condition, or provision of this Agreement that does not render this Agreement null and void, the other Party shall have the right to immediately terminate this Agreement unless such right is specifically waived in writing.

19. **COMPLIANCE WITH LAWS; SEVERABILITY.** This Agreement and performance hereunder are subject to Applicable Law and lawful orders of governmental bodies. If any provision is held invalid or unenforceable, the remainder shall remain in full force and effect, and the invalid provision shall be enforced to the maximum extent permitted to reflect the Parties' intent.

20. **WAIVER OF BREACH.** No waiver is effective unless in writing. A waiver of one breach shall not be deemed a waiver of any other breach.

21. **ASSIGNMENT.** Company may assign this Agreement upon written notice to Contractor. Contractor may not assign this Agreement or delegate any of its duties or obligations without Company's prior written consent.

22. **ACCIDENT REPORTS AND LITIGATION.** Contractor agrees to place itself and its representatives at the service and disposal of Company – without any cost, expense, or compensation to Contractor or any of its representatives – to assist Company in the investigation, reporting, adjustment, defense, and resolution of claims or suits arising out of operations under this Agreement, including providing statements, documents, and reasonable cooperation. In cases of freight loss or damage, Contractor agrees to reasonably cooperate with Company and to comply with Company Policies concerning claims handling. This Section survives termination.

23. **DISPUTE RESOLUTION; ARBITRATION; WAIVER OF CLASS AND COLLECTIVE ACTION**

23.1. **Covered Disputes; Notice.** Except as provided in Section 23.5, any dispute, claim, or controversy between the Parties arising out of or relating to this Agreement, any Schedule, Company Policies, the Parties' relationship, the services, or alleged extra-contractual facts (a "Dispute") shall be resolved exclusively under this Section 23. A Party asserting a Dispute shall provide written notice describing the Dispute and the relief requested (a "Notice of Dispute"). Within ten (10) business days after receipt, the Parties shall confer in good faith to attempt to resolve the Dispute informally.

23.2. **Mandatory Mediation.** If the Dispute is not resolved informally, either Party may submit the Dispute to mediation administered by JAMS. Mediation is a condition precedent to arbitration. The mediation period begins on the date JAMS receives the request for mediation and continues for ninety (90) days (the "Mediation Period"), unless resolved earlier or extended by written agreement.

REFERENCE NO. _____

23.3. Mandatory Binding Arbitration. If the Dispute is not resolved during the Mediation Period, the Dispute shall be resolved by final and binding arbitration administered by JAMS, on an individual basis only, pursuant to the JAMS Expedited Arbitration Rules and Procedures then in effect (the "JAMS Rules"), as modified by this Agreement. The arbitration shall be decided by one (1) arbitrator. Unless the Parties agree otherwise, mediation and arbitration shall take place in Cook County, State of Illinois. The Federal Arbitration Act (9 U.S.C. § 1 et seq.) governs interpretation and enforcement of this Section 23. The Parties agree that the arbitrator shall not decide any dispute concerning the enforceability, validity, or scope of the class/collective/representative waiver in Section 23.4.

23.4. Class/Collective Action Waiver. THE PARTIES AGREE THAT ALL DISPUTES SHALL BE BROUGHT ONLY IN AN INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, REPRESENTATIVE, CONSOLIDATED, OR MULTI-CLAIMANT PROCEEDING. THE ARBITRATOR HAS NO AUTHORITY TO ARBITRATE ON A CLASS, COLLECTIVE, CONSOLIDATED, OR REPRESENTATIVE BASIS, OR TO AWARD RELIEF EXCEPT ON AN INDIVIDUAL BASIS.

23.5. Interim Injunctive Relief. Either Party may seek temporary or preliminary injunctive relief in a court of competent jurisdiction to preserve the status quo or prevent irreparable harm pending completion of mediation and arbitration, without waiving the requirements of this Section 23.

23.6. Fees and Expenses; No Prevailing Party Fees. Each Party shall pay its own attorneys' fees, costs, and expenses incurred in connection with a Dispute. The Parties further agree that each Party shall bear its own share of JAMS filing fees, administrative fees, mediator fees, arbitrator fees, and hearing-related costs, and the arbitrator shall not award attorneys' fees or costs to any Party, except to the extent a non-waivable provision of Applicable Law requires otherwise.

23.7. One-Year Limitations Period. To the fullest extent permitted by Applicable Law, any Dispute must be initiated by delivering a Notice of Dispute and submitting a request for mediation to JAMS within one (1) year after the Dispute first accrues, or the Dispute shall be time-barred.

23.8. Confidentiality. The Parties shall maintain the confidentiality of mediation and arbitration proceedings, including evidence and outcomes, except as necessary to enforce an award, comply with law, or as otherwise required by a governmental authority.

CONTRACTOR INITIALS TO SECTION 23: _____

24. GOVERNING LAW; JURY WAIVER. Except where federal law controls (including the FAA as to Section 23), this Agreement shall be construed and enforced in accordance with the laws of the State of Illinois, without regard to conflicts of laws provisions. Jurisdiction for any dispute under this Agreement is solely in courts located in Cook County, State of Illinois. The Parties consent to exclusive jurisdiction and venue in such courts and waive any objections thereto. WAIVER OF JURY TRIAL. EACH PARTY HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ALL RIGHTS TO A TRIAL BY JURY IN ANY ACTION, PROCEEDING, OR COUNTERCLAIM ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY.

25. RIGHT TO CHANGE AGREEMENT AND SCHEDULES UPON NOTICE. Company reserves the right, in its sole discretion, to modify, amend, or change any term of this Agreement and/or any Schedule (other than the Compensation rate set forth in Schedule B, which may only be changed by mutual written agreement), and Contractor acknowledges and agrees to this right as part of Contractor's contractual obligations. Any such change shall not affect rights or obligations of the Parties arising or in effect prior to the date on which the change takes effect, and shall not apply to loads/deliveries accepted prior to the effective date, except as required by Applicable Law for safety or regulatory compliance. Company shall provide Contractor written notice of any change. Notice may be provided via email, and email is recognized by both Parties as an official form of communication. Contractor's receipt shall be deemed to occur within twenty-four (24) hours after Company sends the email, unless Company receives an automated message that the email was not delivered. If not delivered, Company will make reasonable attempts to contact Contractor and deliver notice through other means. IF CONTRACTOR DOES NOT DELIVER A WRITTEN OBJECTION TO COMPANY WITHIN SEVEN (7) DAYS AFTER DEEMED RECEIPT OF THE NOTICE, THEN IT SHALL BE CONCLUSIVELY DEEMED AND PRESUMED THAT CONTRACTOR HAS ACCEPTED AND AGREED TO THE AMENDMENT(S) IN THEIR ENTIRETY, AND SUCH AMENDMENT(S) SHALL BECOME BINDING AND EFFECTIVE AS OF THE DATE STATED IN THE NOTICE. Contractor's continued provision of services to Company, including acceptance of new loads/deliveries following deemed receipt of notice, without express written objection within such seven (7) day period, shall independently constitute acceptance of the change. If Contractor objects in writing within such seven (7) day period, the Parties shall negotiate in good faith. If the Parties cannot reach agreement on the proposed change, either Party may terminate this Agreement in accordance with Section 17.

26. ATTORNEY REVIEW RIGHT; REVOCATION PERIOD. Contractor acknowledges that Contractor has been advised to consult with an attorney of Contractor's choosing prior to executing this Agreement. Contractor represents and warrants that Contractor has had a full and reasonable opportunity to review this Agreement, ask questions, and obtain legal advice. Notwithstanding the foregoing, Contractor shall have seven (7) days after the date of execution of this Agreement, or before Contractor picks up the first loan under this Agreement,

REFERENCE NO. _____

whichever occurs sooner (the "Revocation Period"), during which Contractor may terminate this Agreement for any reason or no reason by delivering written notice of revocation to Company. If Contractor exercises this right, this Agreement shall be deemed void ab initio and neither Party shall have any further obligation to the other hereunder, except that Contractor shall immediately return all Company property, placards, and identification. If Contractor does not deliver written notice of revocation within the Revocation Period, this Agreement shall be fully binding and enforceable and Contractor's right to revoke shall be permanently waived.

27. ENTIRE AGREEMENT; ELECTRONIC SIGNATURES. This Agreement, together with all Schedules and Exhibits incorporated by reference, any acknowledgements to Company Policies, and all documents incorporated herein by reference (collectively, "Agreement Documents"), constitutes the sole and entire agreement of the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter. Contractor recognizes and affirms that Contractor has read and fully understands this Agreement and all Schedules and Exhibits. Contractor further states and affirms that no promise or inducement of any kind, or promise of special esteem, has been made by Company favoring Contractor. The Agreement Documents may be executed in counterparts. Signatures delivered electronically (including PDF or similar format) are binding as originals. No Party shall assert electronic delivery as a defense to contract formation, except to the extent related to lack of authenticity. By signing electronically, each Party agrees that the electronic signature is the legal equivalent of a manual/handwritten signature.

28. PERSONAL GUARANTY. If Contractor is not an individual, then as a material inducement for Company to enter into this Agreement, the undersigned individual guarantor(s) ("Guarantor") jointly and severally guarantee to Company the full and prompt payment and performance of all obligations of Contractor under the Agreement Documents (the "Guaranteed Obligations"). This guaranty is absolute, unconditional, and continuing and is enforceable without requiring Company first to proceed against Contractor. Guarantor waives notices to the fullest extent permitted by Applicable Law. This guaranty remains effective notwithstanding amendments to the Agreement Documents, assignment, renewal, modification, or extension.

29. ANCILLARY AND ADMINISTRATIVE SERVICES; PROMOTIONS. Contractor acknowledges and agrees that Contractor is not required to purchase, rent, or obtain any products, equipment, or services from Company or any Company Affiliate as a condition to entering into this Agreement or receiving loads, except to the extent required by Applicable Law or to the extent Contractor voluntarily elects an optional program. If Contractor requests, and Company elects in its sole discretion to provide, administrative or ancillary services or accommodations (collectively, "Ancillary Services"), amounts charged for such Ancillary Services may be deducted from amounts owed to Contractor and may include administrative charges in excess of Company's out-of-pocket costs. Contractor acknowledges that Ancillary Services are optional, may be modified or discontinued by Company, and may be provided "as-is" and without warranties to the fullest extent permitted by Applicable Law. Contractor acknowledges that discounts, rebates, referral rewards, incentives, onboarding advances, fee waivers, or other promotional offers ("Promotions") do not entitle Contractor to refunds, credits, retroactive payments, or increased compensation unless expressly stated in an executed written amendment or Schedule. Company may modify, suspend, or terminate Promotions at any time. Contractor agrees not to offset, withhold, or delay amounts owed to Company based on any alleged Promotion entitlement.

30. EQUIPMENT LEASED OR PURCHASED FROM COMPANY OR ANY COMPANY AFFILIATE. To the extent that the Equipment leased to Company under this Agreement is leased, licensed, rented, financed, or purchased by Contractor or any affiliate of Contractor from Company or any affiliate of Company pursuant to a separate lease, lease-purchase, rental, or financing agreement (a "Separate Equipment Agreement"), Contractor agrees that the rights and obligations under such Separate Equipment Agreement are separate, independent, and distinct from this Agreement. In no event will any Separate Equipment Agreement be deemed integrated as part of this Agreement, or vice versa.

31. USE AND RETURN OF OTHER EQUIPMENT. Company may allow Contractor to use trailers, devices, or other equipment owned, leased, or controlled by Company for performance of services. Contractor shall use such equipment only as authorized, shall keep it in good condition (ordinary wear and tear excepted), and shall return it promptly upon request or upon termination. Contractor is responsible for loss of or damage to such equipment caused by Contractor or any Contractor Representative, ordinary wear and tear excepted.

32. PASSENGERS ON-BOARD CONTRACTOR'S VEHICLE. Contractor is required, pursuant to 49 C.F.R. § 392.60, to notify Company of a passenger being on board any vehicle operated under Company's USDOT authority. Contractor is required to notify Company via email, prior to the passenger boarding the vehicle, of: (1) the passenger's name; (2) age; (3) date of birth; (4) relationship to Contractor; and (5) an emergency contact who is not on the vehicle, including telephone number. Minimum age for a passenger, if approved and permitted, is limited by insurance underwriting. Failure to obtain prior permission and approval, and allowing a passenger onto the CMV (or substituted CMV) operated under this Agreement, will subject Contractor to all legal consequences including the right of Company to pursue litigation and immediate corrective action, including contract termination and penalty assessments. In the event Contractor's passengers assert and make recovery under Company's liability policy for uninsured or underinsured motorist coverage, Contractor shall reimburse Company for such payments.

REFERENCE NO. _____

33. **CASH CARD / FUEL CARD USAGE.** In the event that Contractor elects to utilize a charge or cash card issued in Company's name for the purpose of purchasing fuel or other operational expenses, Contractor hereby agrees to hold Company harmless from any use or misuse of such card or program. Contractor further agrees that such charges will be deducted from Contractor's settlement or escrow/security deposit. Should the deduction amount be greater than the combination of settlement and escrow/security balances, Contractor further agrees to pay for these charges and hold Company harmless from such liability.

34. **LOADING RESPONSIBILITY.** Contractor shall be solely responsible for the live loading and live unloading of any and all commodities or other items or materials to be transported or used to transport commodities pursuant to the terms of this Agreement.

35. **DURATION CONTINGENCY.** If Contractor takes a leave of absence from this Agreement for any reason, and is found to be using Company's USDOT authority to transport freight or commodities for any other person, company, or business entity without making Company aware of such activities, Contractor will be responsible for all fees and expenses that would have been incurred, including rate split, insurance, and other incurred costs as if Contractor were still moving loads on behalf of Company. Additionally, Contractor agrees and understands that for as long as Contractor has displayed Company's signage, decals, or logos on the power unit, Contractor is fully subject to all compliance requirements owed to Company until such time as Contractor has fully completed the out-processing with Company, including the satisfaction of removing all signage, logos, and lettering identifying Company from the equipment and returning to Company all issued equipment provided to Contractor.

36. **COPY OF AGREEMENT; RECEIPT.** Contractor agrees to maintain a copy of this Agreement in all vehicles subject to this Agreement. Electronic copies are acceptable. Upon giving possession and control of vehicles subject to this Agreement to Company, Company shall issue a receipt for possession of the vehicles to Contractor. A copy of such receipt must be kept in the vehicle at all times this Agreement is in effect. Upon termination of this Agreement, Contractor agrees to receive possession of the vehicles and issue a receipt to Company recognizing the return of possession and control.

37. **NOTICES.** Any notice, consent, request, demand, or other communication required or permitted to be given under this Agreement (each, a "notice") shall be in writing and shall be given in accordance with the terms of this Section. Any Notice to Company shall be deemed sufficient if delivered to Company's then-current principal place of business, as reflected in Company's records maintained with the applicable state of formation or as otherwise designated by Company in writing from time to time. Company may, but is not required to, designate additional or alternative addresses (including email addresses) for notice by written communication to Contractor. Any Notice to Contractor shall be deemed sufficient if sent to the most recent physical mailing address or email address of Contractor on file with Company (including any address or email address provided by Contractor in the onboarding process or subsequently updated by Contractor in accordance with this Section. Contractor expressly consents to receive notices by email at the email address on file with Company, and agrees that notices sent by email shall have the same force and effect as notices sent by any other method permitted under this Agreement. Contractor is solely responsible for ensuring that Company has Contractor's most current and accurate physical mailing address and email address at all times during the term of this Agreement. Any notice sent by Company to the address or email address then on file with Company shall be deemed properly given regardless of whether Contractor has in fact relocated or changed email addresses, and Contractor waives any defense based on non-receipt if Contractor has failed to maintain current contact information with Company.

38. **PROFESSIONAL CONDUCT STANDARDS.** Contractor acknowledges that the manner in which the Services are performed - including the manner in which Contractor, each Driver, and each other Contractor Representative conducts himself, herself, or itself while performing the Services, interacting with Company's customers, brokers, consignees, shippers, receivers, vendors, and other contractors, or while present at any Company, customer, or third-party facility - directly affects Company's relationships with its customers and brokers and Company's overall business reputation and goodwill. Because performance of the Services is customer-facing and reputation-sensitive, Contractor's obligation to perform the Services in a professional, respectful, and lawful manner (the "Professional Conduct Standards") is a material performance obligation under this Agreement. As an essential element of that performance obligation, Contractor shall at all times cause each Driver and each other Contractor Representative to perform the Services in accordance with the Professional Conduct Standards. The Professional Conduct Standards require that, during performance of the Services or while otherwise acting in connection with the Services, Contractor and each Driver and other Contractor Representative: (a) act in a respectful, courteous, and professional manner toward Company personnel, customers, brokers, consignees, shippers, receivers, vendors, other contractors, the public, and law enforcement; (b) refrain from any form of harassment, discrimination, intimidation, threats, slurs, epithets, offensive jokes or imagery, unwelcome sexual advances, or retaliatory conduct; (c) refrain from physical altercations, threats of violence, theft, conversion, or misappropriation of any property; (d) refrain from dishonest or fraudulent statements, false reporting, or misrepresentation in connection with the Services; and (e) refrain from any other conduct that Company, a customer, or a broker reasonably determines to be unprofessional, unsafe, or materially damaging to Company's business operations, customer relationships, or reputation. Any failure of any Driver or Contractor Representative to perform the Services in accordance with the Professional Conduct Standards shall be deemed a failure by Contractor to perform the Services in accordance with this Agreement, and Company shall be entitled to exercise its remedies under this Agreement, the Schedules, and Company Policies with respect thereto.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK; SIGNATURE PAGE FOLLOWS]

REFERENCE NO. _____

[SIGNATURE PAGE TO CONTRACTOR AGREEMENT]

AGREED AND ACCEPTED AS OF _____ (THE "EFFECTIVE DATE").

CONTRACTOR: _____ Signature: _____ Print Name: _____	COMPANY: _____ Signature: _____ Print Name: _____
GUARANTOR (IF APPLICABLE): _____ Signature: _____ Print Name: _____	

REFERENCE NO. _____

SCHEDULE A – EQUIPMENT IDENTIFICATION

This Schedule A is incorporated into and made part of that certain Contractor Agreement of even date herewith (the “Agreement”) by and between the undersigned Company and Contractor. Capitalized terms not defined in this Schedule have the meanings given in the Agreement.

1. EQUIPMENT IDENTIFICATION. The equipment leased by Contractor to Company under the Agreement (the “Equipment”) includes the following power unit(s) and any accessories listed below. No Equipment may be substituted, added, or removed except by Company’s prior written consent and a revised Schedule A (or other written amendment permitted by the Agreement).

A. POWER UNIT(S)

Unit No. _____ Make/Model _____ Year _____

VIN _____ Plate/State _____

Odometer (as of Effective Date) _____

Additional power units (if any): ☐ None ☐ See attached continuation page.

B. TRAILER(S) (IF ANY ARE LEASED BY CONTRACTOR TO COMPANY)

Trailer No. _____ Make/Type _____ Year _____

VIN _____ Plate/State _____

Additional trailers (if any): ☐ None ☐ See attached continuation page.

C. ACCESSORIES / DEVICES (IF APPLICABLE)

☐ ELD/Telematics Device (make/model) _____

☐ Dash Camera System (make/model) _____

☐ Toll Transponder / Pass (identifier) _____

☐ Other (describe) _____

2. CONDITION; DOCUMENTS; MAINTENANCE. Contractor represents and warrants that the Equipment is in safe operating condition and meets all Applicable Law safety requirements, including applicable FMCSRs, and that Contractor will maintain the Equipment in a safe and roadworthy condition throughout the period it is leased to Company. Contractor will maintain and provide to Company upon request, and will ensure the Equipment carries, all documents required by Applicable Law and Company Policies, including current registration, proof of inspections (including annual inspection documentation), permits, and other required documents. Contractor will perform or cause to be performed all inspections, repairs, and maintenance required to keep the Equipment compliant and safe. Contractor will promptly address out-of-service conditions and will not operate the Equipment in Company’s service while out of compliance or unsafe.

3. PERIOD COVERED; REMOVAL. The Equipment listed above is subject to the Agreement as of the Effective Date and remains subject to the Agreement until: (a) removed by a revised Schedule A, or (b) the Agreement terminates, whichever occurs first. Upon termination, Contractor will promptly remove Company placards/identification and return Company property as required by the Agreement and Company Policies.

4. NON-INTEGRATION NOTICE (EQUIPMENT ACQUIRED FROM COMPANY). If any Equipment listed above is leased, licensed, rented, financed, or purchased by Contractor (or Contractor’s affiliate) from Company (or Company’s affiliate) under a separate agreement, Contractor acknowledges that such separate agreement remains separate, independent, and not integrated with the Agreement.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK; SIGNATURE PAGE FOLLOWS]

REFERENCE NO. _____

[SIGNATURE PAGE TO SCHEDULE A – EQUIPMENT IDENTIFICATION]

AGREED AND ACCEPTED BY:

CONTRACTOR: _____ Signature: _____ Print Name: _____	COMPANY: _____ Signature: _____ Print Name: _____
---	--

REFERENCE NO. _____

SCHEDULE B – COMPENSATION

This Schedule B is incorporated into and made part of that certain Contractor Agreement of even date herewith (the “Agreement”) by and between the undersigned Company and Contractor. Capitalized terms not defined in this Schedule have the meanings given in the Agreement. Company will provide itemized settlement statements in accordance with Applicable Law and the Agreement.

1. COMPENSATION STRUCTURE (SELECT ONE)

☐ A. PERCENTAGE OF “AUR” (PER LOAD/TRIP). Contractor will be entitled to, and the Company will pay to Contractor, _____ % of the Agreed Upon Rate (“AUR”) for each completed load/trip that Contractor or Contractor’s Representative accepts and completes, *minus/less* applicable chargebacks and deductions pursuant to Schedule E, *minus/less* any fines for violations pursuant to Schedule F, and *minus/less* any other deductions or chargebacks permitted by the Agreement. For purposes of this Schedule, “Agreed Upon Rate” or “AUR” means all monies actually received by Company for commodities hauled by Contractor or Contractor Representative as per the rate offered by Company to, and accepted by, Contractor or Contractor Representative (including a driver), *less/reduced* by the following amounts (to the extent applicable): (a) amounts paid to any third party in relation to movement of the load, including amounts paid to other contractors, dispatch agent fees/commissions, and co-brokerage fees; (b) any fees paid to Management Company or any other service provider for settlement processing, direct deposit fees, and other administrative fees; (c) amounts paid by Company to interline or augmenting carriers; (d) warehouse or storage charges; (e) revenue received by Company as an excess value or insurance charge on high-value shipments; (f) incentives, discounts, rebates, allowances, or commissions given by Company to customers or other third parties; (g) amounts paid or accrued for specialized trailers and excessive trailer spotting situations; (h) any technology platform or services utilized by the Company or any Company Affiliate in the administration of the Agreement, settlements, or procurement and processing of loads/deliveries; and, (i) any fees on advance by the Company to any Contractor or any Driver, including any advance on settlement amount(s) prior to the date on which the settlement is calculated and paid. The Contractor acknowledges and agrees, and shall inform Contractor’s Representatives, that the Company will not be required to pay Contractor based on any rated freight bill, any “standard” rate or rate confirmation, or any rate proposed or offered to Contractor or Contractor Representative by any third party. Company will calculate Contractor’s compensation based on the AUR only; and the Contractor understands, acknowledges, and agrees that that percentage reflected is not based on rated freight bill or rate confirmation between the Company and the broker/customer, but rather based on the AUR.

☐ B. PER-MILE RATE. Contractor will be entitled to \$ _____ per mile for each completed load/trip that Contractor accepts and completes, less the Allowable Chargebacks and Deductions in Schedule E and any other deductions permitted by the Agreement. Company will compute mileage using Company’s standard mileage guide/system then in use, unless Company expressly agrees in writing to a different mileage calculation for a specific load/trip.

2. FUEL SURCHARGE. Fuel surcharge, if collected, is not subject to adjustment and is paid to whomever pays the fuel for the vehicle, unless otherwise agreed in writing.

3. ACCESSORIALS; EXTRA PAY. Unless Company expressly approves in writing for a specific load/trip, Contractor is not entitled to additional compensation for detention, layover, stop-off, driver assist, lumper charges, re-delivery, re-consignment, or other accessorials. Accessorial fees, if collected for additional stops, driver assist in loading/unloading, etc., are not subject to adjustment and are owed to the person who performs the work, provided it is documented on BOLs. If Company approves an accessorial for a specific load/trip, Company may (at Company’s option) pay Contractor either: (a) the amount Company actually receives for that accessorial (less any third-party pass-through costs), multiplied by the Contractor percentage if Section 1.A is selected; or (b) a fixed amount stated in the load confirmation or other written approval.

4. SETTLEMENTS; PAYMENT TIMING; DOCUMENTATION. Company will settle with Contractor on a biweekly basis. Company will provide a settlement statement for each settlement period that itemizes: (a) the loads/trips settled, (b) the compensation basis and computation, and (c) each chargeback/deduction applied (including escrow withholdings, if applicable), consistent with Applicable Law. Payment, less any applicable deductions, chargeback items, or any additional items owed to Company by Contractor, shall be made by Company to Contractor within fifteen (15) days of submission of all properly completed required documents and paperwork. All applicable paperwork must be submitted to Company by the deadline established in Company Policies. If paperwork is not complete, Contractor will not receive any settlement until all required documentation is received. Contractor must provide Company the documents reasonably required for billing, compliance, and settlement (including BOL/POD and other load documentation). Company may defer payment for a load/trip until Contractor provides required documentation.

5. PAYEE; FINAL SETTLEMENT. All payments, less advances and deductions specified herein, shall be made directly to Contractor. Contractor shall be solely responsible for compensation of all Contractor’s agents and/or employees. Final settlement from Company shall be made within forty-five (45) days of satisfactory proof by Contractor of full compliance with all of the provisions of this Agreement relating to termination.

REFERENCE NO. _____

6. CHANGE BY NOTICE. Company may amend this Schedule B (other than the Compensation rate, which may only be changed by mutual written agreement) by notice as permitted by the Agreement. Unless required by Applicable Law for safety/regulatory compliance, changes apply prospectively to loads accepted after the effective date stated in the notice.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK; SIGNATURE PAGE FOLLOWS]

REFERENCE NO. _____

[SIGNATURE PAGE TO SCHEDULE B – COMPENSATION]

AGREED AND ACCEPTED BY:

CONTRACTOR: _____ Signature: _____ Print Name: _____	COMPANY: _____ Signature: _____ Print Name: _____
---	--

REFERENCE NO. _____

SCHEDULE C – ESCROW

This Schedule C is incorporated into and made part of that certain Contractor Agreement of even date herewith (the “Agreement”) by and between the undersigned Company and Contractor. Capitalized terms not defined in this Schedule have the meanings given in the Agreement.

1. ESCROW ELECTION (CHECK ONE)

☐ 1.1 NO ESCROW REQUIRED. Company does not require Contractor to maintain an escrow.

☐ 1.2 ESCROW REQUIRED. Contractor must maintain an escrow in the total amount of \$ _____ (the “Required Balance”), administered in a manner intended to comply with 49 C.F.R. § 376.12(k), as applicable, under the following terms:

- (a) Funding. Company will withhold \$ _____ per ☐ week / ☐ settlement / ☐ other: _____, until the Required Balance is reached. Thereafter, Company may withhold amounts necessary to restore the Required Balance after any authorized draw. At Company’s discretion, if the account balance falls below the Required Balance, additional deductions may be made to restore the balance.
- (b) Return of Escrow. Company will return any remaining escrow (less lawful deductions) within forty-five (45) days after termination and completion of return/removal obligations, together with a final accounting, provided that all identification stamps, permits, prorates, permit numbers, and all identification placards are returned to Company and any and all liabilities due Company are satisfied in full, unless Applicable Law requires a different timeframe or process.

2. ADDITIONAL ESCROW FOR SUBCONTRACTORS. If Contractor engages one or more Subcontractors under the Agreement, Company may require Contractor to maintain an Additional Escrow Amount in the amount of \$ _____ per Subcontractor (the “Additional Escrow Amount”). The Additional Escrow Amount shall be funded and administered in the same manner as the base escrow described above, and Company may draw upon such Additional Escrow Amount for any amounts attributable to the acts or omissions of any Subcontractor, in addition to all other permitted uses. Upon termination of the applicable Subcontractor’s engagement, the Additional Escrow Amount attributable to such Subcontractor (less lawful deductions) will be returned in accordance with Section 1.2(e) above.

3. TRUTH-IN-LEASING COMPLIANCE. The escrow provisions of this Schedule are intended to comply with the requirements of 49 C.F.R. § 376.12(k). To the extent any provision of this Schedule conflicts with mandatory requirements of 49 C.F.R. Part 376, the mandatory requirements shall control.

4. CHANGE BY NOTICE. Company may amend this Schedule C by notice as permitted by the Agreement. Unless required by Applicable Law for safety/regulatory compliance, changes apply prospectively.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK; SIGNATURE PAGE FOLLOWS]

REFERENCE NO. _____

[SIGNATURE PAGE TO SCHEDULE C – ESCROW]

AGREED AND ACCEPTED BY:

CONTRACTOR: _____ Signature: _____ Print Name: _____	COMPANY: _____ Signature: _____ Print Name: _____
---	--

REFERENCE NO. _____

SCHEDULE D – IFTA OBLIGATIONS / TAX REPORTING

This Schedule D is incorporated into and made part of that certain Contractor Agreement of even date herewith (the “Agreement”) by and between the undersigned Company and Contractor. Capitalized terms not defined in this Schedule have the meanings given in the Agreement. Contractor is responsible for IFTA compliance unless Contractor elects Company reporting as set forth below. Contractor will provide accurate fuel and mileage records and will remain responsible for the accuracy of information supplied.

ELECT ONE OPTION:

☐ OPTION 1 (CONTRACTOR REPORTS). Contractor will obtain and maintain any required IFTA credentials and will perform all fuel and mileage tax reporting for the Equipment at Contractor’s expense. Contractor will defend, indemnify, and hold harmless Company from claims arising out of Contractor’s fuel tax reporting and payment.

☐ OPTION 2 (COMPANY REPORTS). Company will include the Equipment under Company’s fuel tax reporting account and will perform fuel and mileage tax reporting services for Contractor, subject to the following:

Company will act as the reporting entity for the Equipment. Company will submit required reports and payments in Company’s name. Contractor will promptly provide complete and accurate fuel receipts and mileage/jurisdiction information in the form and timeframe required by Company Policies. If Contractor uses a Company-provided fuel/advance card, Company may rely on card transactions as part of reporting. Company will quarterly either: (i) deduct/recover any net fuel use tax owed attributable to Contractor’s operations; or (ii) credit Contractor for any net fuel use tax credit/refund attributable to Contractor’s operations, in each case as reflected on settlement statements or separate accountings.

Company may compute fuel use and mileage taxes on a fleet-wide average basis. If Contractor fails to provide complete and accurate records timely, Company may compute fuel use taxes based on total miles dispatched at a rate of 7.0 miles-per-gallon (or another reasonable default rate Company adopts by policy), subject to later correction if Contractor produces acceptable records. Company may charge an administrative fee for reporting services in the amount of \$ _____ per ☐ week / ☐ settlement / ☐ quarter / ☐ other: _____, deductible under Schedule E.

IRP PLATES & PERMITS ELECTIONS

☐ Contractor will obtain its own registration cab card and IRP plate. Contractor does NOT want Company to obtain a plate. Contractor will provide a copy of registration to Company.

☐ Contractor wants Company to obtain registration cab card and IRP plate. Contractor will be charged a fee of \$ _____ and will be required to pay until the plate is paid in full.

FORM 2290

☐ Contractor will pay its own 2290 annual filing with the IRS. Contractor will provide proof of payment to Company.

☐ Contractor wants Company to obtain and submit a 2290 for Contractor’s vehicle. Contractor will be financially responsible for repaying this cost to Company.

CHANGE BY NOTICE. Company may amend this Schedule D by notice as permitted by the Agreement. Changes apply prospectively unless required by Applicable Law for safety/regulatory compliance.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK; SIGNATURE PAGE FOLLOWS]

REFERENCE NO. _____

[SIGNATURE PAGE TO SCHEDULE D – IFTA OBLIGATIONS / TAX REPORTING]

AGREED AND ACCEPTED BY:

CONTRACTOR: _____ Signature: _____ Print Name: _____	COMPANY: _____ Signature: _____ Print Name: _____
---	--

REFERENCE NO. _____

SCHEDULE E

ALLOWABLE CHARGEBACKS AND DEDUCTIONS

This Schedule E is incorporated into and made part of that certain Contractor Agreement of even date herewith (the “Agreement”) by and between the undersigned Company and Contractor. Capitalized terms not defined in this Schedule have the meanings given in the Agreement. This Schedule is intended to satisfy the written specification of deductions required by Applicable Law, including 49 C.F.R. Part 376, as applicable.

Contractor authorizes Company to deduct, charge back, withhold, and/or set off the amounts described in this Schedule and in Table E-1 below from any sums payable to Contractor under the Agreement, including settlements, escrow (if applicable), holdbacks, credits, refunds, or other amounts otherwise due to Contractor, to the extent permitted by Applicable Law. Company may apply deductions at the time the amount becomes known. If the amount is not finally determined at the time of settlement, Company may withhold a reasonable estimate and later true-up when final amounts are known. **If deductions exceed sums payable to Contractor, Contractor will pay the balance due within ten (10) days after written notice.**

In addition to the items listed in Table E-1, the following categories of charges and expenses are deductible to the extent incurred, advanced, assessed, or chargeable in connection with Contractor’s performance, the Equipment, or Contractor’s elected programs:

1. All charges and expenses for which Contractor is responsible under the terms of the Agreement, including those set forth in Table E-1.
2. All other costs and expenses relating to the operation and maintenance of the Equipment.
3. Damage to cargo and cargo claims attributable to Contractor or a Contractor Representative.
4. Cash advances and fees associated with such advances.
5. Fuel purchases on a Company-provided fuel/advance card or Company account.
6. Fuel and Highway Use Tax, including IFTA true-ups, penalties, interest, and administrative fees.
7. Tolls, scale tickets, parking, and similar road expenses advanced or paid by Company.
8. In addition to those listed in Table E-1, all other fines, tickets, citations, toll violations, overweight penalties, and related costs attributable to Contractor or a Contractor Representative.
9. Road Use, Fuel Tax Permit charges, permits, base plates, registrations, authority-related fees, and compliance vendor costs.
10. In addition to those set forth in Table E-1, all insurance premiums, fees, and deductibles with respect to policies required by the Agreement, including Occupational Accident insurance premiums (if applicable).
11. Payments due from Contractor to third party(ies) for which the Contractor has authorized Company to deduct amount(s) due under such third-party agreement(s), including any lease agreement(s) for trucks, trailers, and other equipment.
12. All other amounts Contractor owes Company under the Agreement, any Schedule, Company Policies, or any written election/authorization signed by Contractor, to the extent permitted by Applicable Law.

CHANGES TO THIS SCHEDULE: Company reserves the right to amend, modify, or update this Schedule E (including Table E-1) by written notice to Contractor. Notice will be provided via email, which is recognized by both Parties as an official form of communication. Contractor’s receipt of the notification email shall be deemed to have occurred within twenty-four (24) hours after Company sends the email, unless Company receives an automated non-delivery message. Contractor’s continued provision of services following receipt of the notification email, without express written objection within seven (7) days, shall be deemed acceptance of the updated Schedule. If Contractor objects and the Parties cannot reach agreement, either Party may terminate the Agreement in accordance with its termination provisions.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK; SIGNATURE PAGE FOLLOWS]

REFERENCE NO. _____

[SIGNATURE PAGE TO SCHEDULE A – Allowable Chargebacks and Deductions]

AGREED AND ACCEPTED BY:

CONTRACTOR: _____ Signature: _____ Print Name: _____	COMPANY: _____ Signature: _____ Print Name: _____
---	--

REFERENCE NO. _____

TABLE E-1

EFFECTIVE DATE: _____

No.	Deduction & Chargeback Description	Amount Deducted	Deduction Frequency
A. Onboarding Charges and Deductions			
A-1	Drug Test Fee (Pre-engagement and subsequent tests)	\$ _____ per test	Once for onboarding; thereafter per occurrence
A-2	Orientation, Onboarding, Permitting, E-Log Devices, Credentialing, and Background Verification Fees	\$ _____ per driver	Once for onboarding
A-3	Equipment Registration	\$ _____ per Equipment	Once on registration of each Equipment
B. Escrow Deductions & Charges			
B-1	Escrow Deposit (per Driver)	\$ _____	\$ _____ deducted from each settlement until Escrow replenished
C. Insurance Deductions & Charges			
C-1	Insurance Deductible — Auto Liability	\$ _____ per occurrence	Per Occurrence
C-2	Insurance Deductible — Cargo Damage	\$ _____ per occurrence	Per Occurrence
C-3	Insurance Deductible — Physical Damage	\$ _____ per occurrence	Per Occurrence
C-4	Company Insurance Program Reimbursement (premiums, coverages elected)	\$ _____ per power unit	Monthly
C-5	Premiums/Costs for Coverage Procured by Company Due to Contractor's Failure to Maintain Required Insurance	Actual cost	Per Occurrence
C-6	Cargo Claims, Shortages, and Salvage Charges Attributable to Contractor	Actual claim/cost amount	Per Occurrence
D. Equipment, Trailer, and Carrier Property Related Charges & Deductions			
D-1	Trailer Rental Fee	\$ _____ per week	Weekly
D-2	Cleaning, Repair, Repositioning, Towing, Recovery, or Storage Charges for Company Equipment	Actual cost + \$250.00 admin fee	Per Occurrence
D-3	Excessive Mileage Charges on Company Trailers	\$ _____ per mile	Per Occurrence
D-4	Truck Keys — Not Returned / Damaged	\$ _____ per set	Per Occurrence
D-5	Fuel Card — Not Returned	\$ _____	Per Occurrence
D-6	ELD / Logbook Tablet — Not Returned (PINs/passwords must be removed; otherwise deemed not returned)	\$ _____	Per Occurrence
D-7	License Plate — Not Returned	\$ _____	Per Occurrence
D-8	Company Stickers, Decals, and Logos — Not Returned	\$ _____	Per Occurrence
D-9	Toll Transponder / Pass Device — Not Returned	\$ _____	Per Occurrence
D-10	Dash Camera (if applicable) — Not Returned	\$ _____	Per Occurrence
D-11	GPS Unit — Not Returned	\$ _____	Per Occurrence
D-12	Interior Cab Cleaning (if truck returned dirty)	\$ _____	Per Occurrence
D-13	Truck Binder (permits, decals, documents) — Not Returned	\$ _____	Per Occurrence

[DRAFT FOR REVIEW PURPOSES ONLY; DO NOT USE]

REFERENCE NO. _____

D-14	Liquidated Damages for Failure to Return Equipment (see Agreement §8)	\$750.00 + \$450.00 per day, plus actual repossession, towing, and storage costs	Actual Cost + Fixed Fee + Per Day
D-15	Trailer Repair	Actual Cost	Per Occurrence
E. Compliance Charges			
E-1	Quarterly IFTA Filing Charge (If Applicable)	\$ _____	Quarterly
E-2	IFTA Calculations & Obligation (per-mile admin fee) (If Applicable)	\$ _____ per mile	Weekly
E-3	Fuel Transaction Service Fee	\$ _____ per transaction	Per Fuel Transaction
E-4	Toll Violations — Toll-by-Plate Pass-Through (unauthorized or unpaid tolls)	2x the underlying toll amount, plus all fines, late fees, and processing fees	Per Occurrence
E-5	Tolls — Routine (Bestpass or authorized method)	Invoice amount	Weekly
E-6	MVR Renewal / Motor Vehicle Records / Background Investigations	Actual cost	Per Occurrence (MVR due every 11 months)
E-7	Permits, Base Plates, Registrations, Authority-Related Fees	Actual cost	Per Occurrence
E-8	Citation / Ticket from Official Enforcement Officer	Citation/ticket amount + \$250.00 admin fee	Per Occurrence
F. Fuel, Advances, and Road Expenses			
F-1	Fuel Purchased on Company Card or Account	Invoice amount	Weekly
F-2	Cash Advances	Advance amount + applicable fees	Per Occurrence
F-3	Returned Payment / Failed ACH / Stop Payment	Actual cost + \$250.00 admin fee	Per Occurrence
F-4	Off-Network Fueling Without Authorization	\$ _____ per transaction	Per Fuel Transaction
F-5	IFTA Manual Reconstruction Fee (missing receipts or off-network fueling requiring data correction)	\$ _____	Per Occurrence
G. Administrative and Program Fees			
G-1	ELD / Telematics / Camera Program Fees, Device Rental, Data/Service Fees	\$ _____ per week	Weekly
G-2	Dispatch / Administrative / Settlement Processing Fee	\$ _____ per month	Monthly
G-3	IFTA Reporting Service Fee	\$ _____ per quarter	Quarterly
G-4	Continual Qualification Fees (MVR monitoring, drug/alcohol testing, safety programs)	Actual cost	Per Occurrence
G-5	Investigation Fees (loss investigation where Company liability brought into question)	Actual cost	Per Occurrence
G-6	Overpayments to Contractor (excess or miscalculated settlement amounts)	Overpayment amount	Per Occurrence — may be split across multiple settlements
G-7	Lease Payments Owed by Contractor to Any Leasing Company	Per lease terms	Per Lease Schedule
G-8	TripPak Processing Fee	\$ _____, per delivery	Per Occurrence
G-9	Direct Deposit Processing and Admin Fee	\$ _____, per direct deposit	Per Occurrence
H. Customer Service Failures and Accessorial Pass-Throughs			

REFERENCE NO. _____

H-1	Late Delivery Penalty / Missed Appointment Fee	Customer chargeback amount	Per Occurrence
H-2	Re-Delivery Costs / Re-Consignment Fees	Customer chargeback amount	Per Occurrence
H-3	Storage / Warehouse Charges Attributable to Contractor	Customer chargeback amount	Per Occurrence
H-4	Lumper / Driver Assist Costs	Invoice amount	Per Occurrence
H-5	Missing, Late, Inaccurate, or Non-Compliant Documentation (BOL/POD issues)	Customer chargeback amount + up to \$150.00 admin fee	Per Occurrence
H-6	Failure to Provide a Lumper Receipt	Unreimbursed amount	Per Occurrence
I. Termination-Related Charges			
I-1	Final Settlement Holdback (30 days post-termination to reconcile chargebacks, claims, IFTA, and equipment return)	Up to full final settlement amount	Once upon termination; released after 30 days less any applied amounts
I-2	Equipment Repossession (failure to return equipment after termination)	Greater of \$500.00/day or \$1.00/mile/day + actual repossession, towing, and storage costs	Per Day until returned

[END OF SCHEDULE E]

REFERENCE NO. _____

SCHEDULE F

VIOLATIONS, FINES, AND BONUSES

This Schedule F is incorporated into and made part of that certain Contractor Agreement of even date herewith (the "Agreement") by and between the undersigned Company and Contractor. Capitalized terms not defined in this Schedule have the meanings given in the Agreement.

1. **LIABILITY FOR VIOLATIONS.** In the event that Contractor or any of its employees or agents violate any rules and/or regulations of DOT, or any federal or state law or regulation, or any municipal ordinance, and, as a result thereof, Company is fined and/or receives any negative assessment which is deemed or viewed as being detrimental to Company, in any court or by any governmental agency or entity, Contractor shall reimburse Company for any incurred loss in connection therewith, including but not limited to reasonable attorneys' fees.

2. **DRIVER SAFETY BONUS PROGRAM.** As part of Company's driver safety program, Company may, in its sole discretion, award the bonuses set forth in Table F-1 below. Bonuses are payable only if (i) Contractor submits a complete and legible copy of the inspection report to Company within twenty-four (24) hours of the inspection and (ii) Contractor and the applicable Driver are otherwise in good standing under the Agreement and Company Policies at the time of payment. Bonus amounts, eligibility criteria, and program terms may be updated by Company by written notice.

3. **VIOLATIONS AND FINES SCHEDULE.** The fines set forth in Table F-2 below apply to the conduct described, in addition to (and without duplication of) the inspection-level penalty assessments in Section 2 above. Fines may be deducted from settlements, escrow, or other amounts otherwise payable to Contractor as provided in the Agreement and Schedule E. To the extent any fine listed in Table F-2 also addresses conduct that is the subject of a Company Policy and that Company Policy specifies a different amount or remedy for the same conduct, the more recently issued of (i) the applicable Company Policy or (ii) the then-current version of this Schedule F shall control. Fines are cumulative with all other remedies available to Company under the Agreement, the Schedules, the Company Policies, and Applicable Law.

4. **CUMULATIVE REMEDIES.** The fines in this Schedule F are in addition to (and not in lieu of) Company's right to (a) pass through actual customer/broker chargebacks, fines, or penalties; (b) recover actual damages, costs, or losses; (c) place Contractor on dispatch hold; and (d) terminate the Agreement or Contractor's right to receive dispatches under the Agreement for violations. In addition to the fines set forth in Schedule F, the Company may immediately terminate the Agreement upon the Contractor's or its' Driver's any violation(s) set forth in Table F-2. The termination of the Agreement for violation(s) will not release the Contractor from the fines and obligations pursuant to this Schedule F.

5. **DISCRETIONARY WAIVER OF FINES AND PENALTIES.** Company may, in its sole and absolute discretion, waive, reduce, defer, or decline to assess any fine, penalty, charge, or other assessment under this Schedule F with respect to any specific incident, occurrence, or Contractor. Any such waiver, reduction, deferral, or declination to assess (each, a "Discretionary Waiver"): (a) shall apply only to the specific incident, occurrence, or Contractor to which it is expressly directed, and shall not apply to any other incident, occurrence, or Contractor, whether or not similar in nature or involving the same Contractor or conduct; (b) shall not constitute, establish, or evidence a policy, practice, course of dealing, or course of performance of Company, and shall not be construed as Company's position, interpretation, or practice with respect to any other violation, fine, or penalty under this Schedule F, the Agreement, any other Schedule, or any Company Policy; (c) shall not be cited, relied upon, or asserted by Contractor (or any Contractor Representative, driver, or other third party) in any dispute, proceeding, or negotiation as evidence of Company's past, current, or future treatment of any violation, fine, or penalty, and Contractor expressly waives, to the fullest extent permitted by Applicable Law, any defense, claim, or argument based on Company's prior Discretionary Waiver, including any argument of estoppel, waiver by course of conduct, detrimental reliance, selective enforcement, or inconsistent treatment; (d) shall not create any right, expectation, or entitlement on the part of Contractor (or any Contractor Representative) that Company will grant any Discretionary Waiver in the future, whether for the same conduct, similar conduct, or any other matter, and Contractor acknowledges that it has no such right or expectation; (e) shall not be deemed an admission by Company that any fine, penalty, charge, or assessment was improperly assessed, not owed, or subject to reduction; and, (f) shall not limit, waive, release, or otherwise affect Company's right to fully enforce this Schedule F, the Agreement, any other Schedule, or any Company Policy at any time thereafter, including against the same Contractor for the same or similar conduct. Any Discretionary Waiver must be in writing (including email) and signed or issued by an authorized representative of Company to be effective. No oral statement, informal communication, failure to enforce, delay in enforcement, or forbearance by any employee, agent, or representative of Company shall constitute a Discretionary Waiver.

6. **CHANGE BY NOTICE; PROSPECTIVE APPLICATION.** COMPANY HAS THE RIGHT TO AMEND AND UPDATE THIS SCHEDULE F BY WRITTEN NOTICE TO CONTRACTOR. Notice will be provided via email. Contractor's receipt shall be deemed within twenty-four (24) hours of sending. Contractor's continued provision of services without express written objection within seven (7) business days shall be deemed acceptance. If Contractor objects and the Parties cannot reach agreement, either Party may terminate the Agreement in accordance with its termination provisions. Unless required by Applicable Law for safety/regulatory compliance, changes apply prospectively.

[DRAFT FOR REVIEW PURPOSES ONLY; DO NOT USE]

REFERENCE NO. _____

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK; SIGNATURE PAGE FOLLOWS]

REFERENCE NO. _____

[SIGNATURE PAGE TO SCHEDULE F — VIOLATIONS, FINES, AND BONUSES]

AGREED AND ACCEPTED BY:

CONTRACTOR: _____ Signature: _____ Print Name: _____	COMPANY: _____ Signature: _____ Print Name: _____
---	--

REFERENCE NO. _____

TABLE F-1 — BONUS SCHEDULE

No.	Bonus Description	Bonus Amount	Eligibility
B-1	Level I: North American Standard Inspection — No violation discovered	\$400.00	Per clean inspection, limited to each calendar month
B-2	Level II: Walk-Around Driver and Vehicle Inspection — No violation discovered	\$330.00	Per clean inspection, limited to each calendar month
B-3	Level III: Driver-Only Inspection — No violation discovered	\$250.00	Per clean inspection, limited to each calendar month
B-4	Level IV: Special Inspection — No violation discovered	\$200.00	Per clean inspection, limited to each calendar month
B-5	Level V: Vehicle-Only Inspection — No violation discovered	\$200.00	Per clean inspection, limited to each calendar month
B-6	No roadside inspection violations in a rolling 3-month period	\$300.00	Per qualifying 3-month period

REFERENCE NO. _____

TABLE F-1 — FINES SCHEDULE

No.	Violation / Conduct Description	Fine Amount	Frequency / Notes
A. Unsafe Driving			
A-1	Reckless driving, texting while driving, or speeding in a construction zone	\$ _____	Per Occurrence
A-2	Speeding 11–14 mph over the posted limit	\$ _____	Per Occurrence
A-3	Failing to use a seat belt	\$ _____	Per Occurrence
A-4	Following too close	\$ _____	Per Occurrence
A-5	Failure to obey or yield right-of-way	\$ _____	Per Occurrence
A-6	Improper lane change	\$ _____	Per Occurrence
A-7	Improper turning	\$ _____	Per Occurrence
A-8	Railroad-crossing violation	\$ _____	Per Occurrence
A-9	Violating lane restrictions / left lane violation	\$ _____	Per Occurrence
A-10	Failure to obey traffic control device	\$ _____	Per Occurrence
A-11	Driving into oncoming traffic	\$ _____	Per Occurrence
A-12	Failure to maintain lane	\$ _____	Per Occurrence
A-13	Failure to use hazard warning flashers	\$ _____	Per Occurrence
A-14	Failure to dim headlamps	\$ _____	Per Occurrence
A-15	Failure to use caution in hazardous conditions	\$ _____	Per Occurrence
A-16	Unlawful parking	\$ _____	Per Occurrence
A-17	Using a hand-held device while operating a CMV	\$ _____	Per Occurrence
B. Drugs & Alcohol			
B-1	Possession, use, or being under the influence of drugs or alcohol	\$ _____	Per Occurrence
B-2	Violating an out-of-service order related to alcohol use	\$ _____	Per Occurrence
B-3	Failure to report an accident requiring drug and alcohol testing	\$ _____	Per Occurrence
C. Hours of Service & Logs			
C-1	Driving after being placed out of service	\$ _____	Per Occurrence
C-2	Driving while ill or fatigued	\$ _____	Per Occurrence
C-3	False logs or HOS violation	\$ _____	Per Occurrence
C-4	Log not current / no log / failure to retain prior 7 days' logs	\$ _____	Per Occurrence
C-5	Log violation (general / form and manner)	\$ _____	Per Occurrence
C-6	Late logs	\$ _____ per day	Per Day
C-7	Driving while logged out of ELD	\$ _____ per day	Per Day
C-8	Disconnected / tampered ELD	\$ _____ per day	Per Day
D. Driver Fitness			
D-1	Driving CMV without a CDL or with a suspended CDL	\$ _____	Per Occurrence
D-2	Failure to report or notify Company of a suspended license	\$ _____	Per Occurrence

[DRAFT FOR REVIEW PURPOSES ONLY; DO NOT USE]

REFERENCE NO. _____

D-3	Learner's-permit violations, endorsement violations, or wrong-license-type violations	\$ _____	Per Occurrence
D-4	No English-proficient driver	\$ _____	Per Occurrence
D-5	No medical card in driver's possession	\$ _____	Per Occurrence
E. Documentation, Cargo, and Securement			
E-1	Late bill of lading	\$ _____	Per Occurrence
E-2	Lost bill of lading	\$ _____	Per Occurrence
E-3	Failure to follow delivery instructions	\$ _____	Per Load
E-4	Failure to scale a load and notify Company of overweight condition	\$ _____ + Contractor pays ticket	Per Occurrence
E-5	Failure to turn in roadside inspection or ticket on time	\$ _____	Per Occurrence
E-6	Failure to turn in trailer inspection reports as required	\$ _____ per week	Per Week
E-7	Lost tractor documents folder	\$ _____	Per Occurrence
F. Riders, Loads, and Authority			
F-1	Unauthorized riders or passengers	\$ _____	Per Occurrence
F-2	Pulling unreported or unauthorized broker loads	\$ _____	Per Occurrence
F-3	Singles falsifying loads as teams	\$ _____	Per Occurrence
F-4	Allowing an unqualified or unauthorized person to drive	\$ _____	Per Occurrence
G. Reporting and Communication			
G-1	Missing required check calls	\$ _____ per call	Per Missed Call
G-2	Failure to notify Safety of driver/truck status changes within 24 hours (vacation, disqualification, OOS, return-to-service, etc.)	\$ _____ per day	Per Day until notice provided
G-3	Failure to notify Maintenance when dropping or switching trailers	\$ _____	Per Occurrence
H. Equipment and Property			
H-1	Switching license plates or parts between trailers	\$ _____	Per Occurrence
H-2	Breaking pin locks off trailers	\$ _____ + cost of lock	Per Occurrence
H-3	Changing parameters on the truck ECM (if applicable)	\$ _____	Per Occurrence
H-4	Failure to return truck to home terminal same day after termination	\$750.00 + \$450.00/day until returned, in addition to repossession, towing, and storage costs	Per Occurrence (in addition to Agreement \$8 liquidated damages)
H-5	Using Company-furnished truck for personal needs without authorization	\$ _____ per day	Per Day
I. Conduct on Customer or Company Property			
I-1	Smoking on customer or Company property without permission	\$ _____	Per Reported Occurrence
I-2	Using customer or Company telephones without permission	\$ _____	Per Reported Occurrence
I-3	Littering on customer or Company property	\$ _____	Per Reported Occurrence
J. Other Fines			

[DRAFT FOR REVIEW PURPOSES ONLY; DO NOT USE]

REFERENCE NO. _____

J-1	Any other fine, charge, or assessment set forth in any Company Policy or written notice	Amount stated in Policy or notice	Per Occurrence
J-2	Failure to pull into a weigh station	\$ _____	Per Occurrence
J-3	Failure to accept tracking from a broker	\$ _____ + tracking failure fee	Per Occurrence
J-4	3rd-party property damage caused by Contractor negligence	Cost of damage	Per Occurrence

REFERENCE NO. _____

DISCLOSURE AND ACKNOWLEDGEMENT OF INSURANCE RESPONSIBILITIES

This Disclosure and Acknowledgement (this “Acknowledgement”) is made in connection with the Contractor Agreement of even date herewith between the undersigned Company and Contractor. The undersigned Driver (if any) signs to acknowledge the same disclosures.

A. CONTRACTOR ACKNOWLEDGEMENT

1. Independent Responsibility for Coverage. Contractor acknowledges and agrees that, pursuant to the Contractor Agreement, Contractor (and not Company) is solely and exclusively responsible for obtaining and maintaining occupational accident insurance coverage and, where required by Applicable Law, workers’ compensation insurance coverage, for Contractor and for all drivers, employees, subcontractors, agents, and representatives engaged by Contractor (collectively, “Contractor Personnel”). Contractor understands and acknowledges that Company has no obligation to procure, maintain, or pay for occupational accident coverage or workers’ compensation coverage for Contractor or Contractor Personnel. Contractor will not make any claim against Company for such coverage or for benefits payable under such coverage. Contractor represents and warrants that Contractor has procured, and will maintain during the term of the Contractor Agreement, the coverages required by the Contractor Agreement. Contractor will provide certificates of insurance upon request.

3. Optional Program. Company may offer occupational accident coverage as part of an insurance program administered by Company or an affiliate. Participation is optional. If the Company offers occupational accident coverage and the Contractor elects to enroll, Contractor is responsible for premiums, fees, and deductibles as disclosed by the program, and Contractor authorizes deductions from settlements to the extent permitted by Applicable Law and the Contractor Agreement.

5. Release and Indemnification. Contractor, on behalf of Contractor and Contractor Personnel, releases Company and agrees to defend, indemnify, and hold Company harmless from claims, demands, damages, liabilities, penalties, or losses arising out of or relating to occupational accident coverage or workers’ compensation coverage, including any alleged failure to procure or maintain such coverage, except to the extent prohibited by non-waivable Applicable Law.

B. DRIVER ACKNOWLEDGEMENT (IF DRIVER IS NOT THE CONTRACTOR)

6. No Workers’ Compensation From Company. Driver acknowledges that Driver is engaged by Contractor, not Company, and that Company does not provide workers’ compensation coverage or occupational accident coverage to Driver unless Contractor separately elects a program and such program expressly provides coverage to Driver.

7. Claims Directed to Contractor. Driver agrees that any claim for injury, disability, wage replacement, or similar benefits must be directed to Contractor and/or Contractor’s insurer(s), not to Company.

ACKNOWLEDGED AND AGREED BY:

CONTRACTOR: _____ Signature: _____ Print Name: _____	COMPANY: _____ Signature: _____ Print Name: _____
DRIVER: _____ Signature: _____ Print Name: _____	

REFERENCE NO. _____

SEVEN-DAY PRIOR HOURS STATEMENT
(49 C.F.R. § 391.23 / PRIOR WORK HOURS CERTIFICATION)

Driver Name: _____
Address: _____
City/State/Zip: _____
CDL Number: _____ CDL State: _____ CDL Exp. Date: _____

Company: _____
Contractor (if different): _____
Hire/Start Date With Company/Contractor: _____

The Federal Motor Company Safety Regulations require the motor carrier to obtain from a driver an account of the driver's total time on duty for the seven (7) days preceding the date the driver is first used, and the date and time the driver was last relieved from duty.

Date of Statement: _____
Date/Time Last Relieved From Duty: _____

Enter total hours ON DUTY (all work time, for all employers) for each day listed:

Day 1 (Start Date minus 7):	_____ hours	Date: _____
Day 2 (Start Date minus 6):	_____ hours	Date: _____
Day 3 (Start Date minus 5):	_____ hours	Date: _____
Day 4 (Start Date minus 4):	_____ hours	Date: _____
Day 5 (Start Date minus 3):	_____ hours	Date: _____
Day 6 (Start Date minus 2):	_____ hours	Date: _____
Day 7 (Start Date minus 1):	_____ hours	Date: _____

Total On-Duty Hours (past seven days): _____ hours

CERTIFICATION

By signing below, I certify that the information above is true and correct to the best of my knowledge and that I have provided my complete on-duty time for the seven (7) days preceding the start date listed above.

DRIVER:

Signature: _____
Printed Name: _____

REFERENCE NO. _____

STATEMENT OF SUBLEASE (SUBLEASE / AUTHORIZED COMPANY)
(TO BE CARRIED IN EQUIPMENT WHEN OPERATING UNDER SUBLESSEE AUTHORITY)

Sublessee (Authorized Motor Carrier): _____
USDOT No.: _____ MC No.: _____
Sublessee Address: _____

Sublessor (Fleet Operator / Company): _____
USDOT No.: _____ MC No.: _____
Sublessor Address: _____

Original Lessor (Owner-Operator/Contractor): _____
Original Lessor Address: _____

Equipment:
Unit/Truck No.: _____ Year/Make/Model: _____
VIN: _____ Plate/State: _____

Sublessee certifies that the above Equipment is being subleased for operation by Sublessee under Sublessee's operating authority. The prime lease is evidenced by the Contractor Agreement between Original Lessor and Sublessor dated _____. The sublease is evidenced by a written sublease agreement between Sublessor and Sublessee dated _____.

Copies of the prime lease and sublease are on file at Sublessor's office and/or Sublessee's office at the addresses listed above. The agreements are intended to remain in effect for more than thirty (30) days unless terminated pursuant to their terms.

IN WITNESS WHEREOF, Sublessee has caused this Statement of Sublease to be signed by its authorized representative.

SUBLESSEE:

By: _____
Name/Title: _____
Date: _____

DRIVER ACKNOWLEDGEMENT OF RECEIPT AND CARRYING

I acknowledge receipt of this Statement of Sublease and agree to carry it in the Equipment and produce it upon request by law enforcement or authorized officials while operating under Sublessee authority.

Driver Name: _____
Signature: _____

REFERENCE NO. _____

STATEMENT OF LEASE (PRIME LEASE)
(TO BE CARRIED IN EQUIPMENT – 49 C.F.R. § 376.11(c)(2))

Lessee (Authorized Motor Carrier): _____

USDOT No.: _____ MC No.: _____

Lessee Address: _____

Lessor (Owner-Operator/Contractor): _____

Lessor Address: _____

Equipment (as identified in the Contractor Agreement / Schedule A):

Unit/Truck No.: _____ Year/Make/Model: _____

VIN: _____ Plate/State: _____

Lessee certifies that the above Equipment is being leased and operated by Lessee. A copy of the Contractor Agreement (the “Lease”) is on file at Lessee’s office at the address listed above. The Lease is dated _____ and is intended to remain in effect for more than thirty (30) days unless terminated by either party pursuant to its terms.

There are no restrictions in the Lease as to commodities that may be transported, except as may be imposed by Applicable Law or customer requirements for a particular load.

IN WITNESS WHEREOF, Lessee has caused this Statement of Lease to be signed by its authorized representative.

LESSEE:

By: _____

Name/Title: _____

Date: _____

DRIVER ACKNOWLEDGEMENT OF RECEIPT AND CARRYING

I acknowledge receipt of this Statement of Lease and agree to carry it in the Equipment and produce it upon request by law enforcement or authorized officials while operating in Lessee’s service.

Driver Name: _____

Signature: _____

REFERENCE NO. _____

LIMITED POWER OF ATTORNEY AND AUTHORIZATION

This Limited Power of Attorney and Authorization (this "POA") is granted by the undersigned ("Grantor") to _____ ("Company").

Grantor (check one): ☐ Contractor ☐ Driver ☐ Contractor as Driver (same person)

Grantor operates or may operate commercial motor vehicles in connection with Company's operations under a contractor relationship. During operations, Grantor may incur citations, tickets, warnings, summonses, or other violations (collectively, "Citations"). Grantor desires to authorize Company to assist in handling Citations as set forth below.

1. GRANT OF LIMITED POWER. Grantor hereby grants Company a limited power of attorney to, in Company's discretion: (a) Retain attorneys, agencies, or authorized representatives to handle, contest, negotiate, or resolve Citations issued to Grantor in connection with commercial vehicle operations related to Company; (b) Execute and submit documents reasonably necessary to address Citations, including requests for hearing, continuances, filings, and settlement documents, in Grantor's name, to the extent permitted by the issuing jurisdiction; (c) Communicate with courts, administrative agencies, and other authorities regarding Citations; and, (d) Obtain and provide records reasonably necessary to address Citations, including copies of citations, proof of insurance (as applicable), vehicle information, and related documentation.

2. LIMITATIONS. This POA is limited solely to Citations and related administrative matters arising from commercial vehicle operations connected to Company. Company is not obligated to contest any Citation and may determine, in its discretion, whether to contest, resolve, or take no action. Grantor remains responsible for compliance obligations and for any fines, penalties, or legal obligations that are not dismissed or otherwise resolved.

3. COSTS; REIMBURSEMENT; DEDUCTION AUTHORIZATION. If Company advances payments for fines, fees, court costs, administrative charges, or third-party service costs in connection with a Citation, Grantor authorizes Company to seek reimbursement and, where applicable, to deduct reimbursable amounts from sums otherwise payable to Contractor under the Contractor Agreement or related settlement process, to the extent permitted by Applicable Law.

4. NO EMPLOYMENT; NO LIABILITY FOR OUTCOME. Company's assistance does not create an employer-employee relationship between Company and Grantor. Company is not liable for the outcome of any legal or administrative proceeding relating to a Citation, except to the extent caused by Company's gross negligence or willful misconduct.

5. TERM; REVOCATION. This POA remains effective while Grantor is active with Company and thereafter solely as needed to complete any Citation matter initiated during that period. Grantor may revoke by written notice to Company; however, revocation will not affect actions taken before Company receives written revocation.

6. INDEMNIFICATION. Grantor agrees to indemnify and hold harmless Company and its officers, employees, and agents from claims and liabilities arising out of actions taken under this POA, except to the extent caused by Company's gross negligence or willful misconduct.

ACKNOWLEDGED AND AGREED BY:

GRANTOR:

Signature: _____

Printed Name: _____

REFERENCE NO. _____

DRIVER SAFETY TRAINING & ACKNOWLEDGEMENT OF POLICIES
(FMCSA/DOT COMPLIANCE; RECEIPT OF HANDBOOKS; ACCIDENT REPORTING)

Driver Name: _____

Company: _____

Contractor (if different from Driver): _____

Contractor Agreement Date: _____

1. TRAINING CONFIRMATION. The undersigned Driver acknowledges and confirms that Driver has received safety and compliance onboarding and has had an opportunity to ask questions regarding DOT/FMCSA requirements and Company Policies applicable to Driver's operations in connection with Company.

2. RECEIPT/ACCESS TO HANDBOOKS AND POLICIES. Driver acknowledges receipt of, or access to, the following materials (as provided physically, electronically, or by web link) and agrees to read and comply with them:

(a) Federal Motor Carrier Safety Regulations (FMCSR) handbook or equivalent reference materials.

(b) Interstate Truck Driver's Handbook (or equivalent).

(c) North American Emergency Response Guidebook (as applicable).

(d) Company's safety/compliance policies and standard operating procedures ("Company Policies"), including updates issued by Company from time to time.

3. CORE COMPLIANCE COMMITMENTS. Driver agrees that, at all times while operating in connection with Company's operations, Driver will comply with Applicable Law and Company Policies, including requirements relating to driver qualification, hours of service, inspection/maintenance reporting, safe driving practices, and accident/incident reporting.

4. ACCIDENTS; INCIDENTS; OUT-OF-SERVICE EVENTS. Driver agrees to report immediately from the scene (or as soon as safely possible) any accident, injury, property damage, cargo loss/shortage, citation, out-of-service event, or significant incident, and to cooperate with investigations, reporting, and claims processes.

5. QUESTIONS AND CLARIFICATIONS. Driver understands Driver may request clarification from Company regarding safety/compliance expectations at any time and acknowledges that uncertainty is not a defense in an audit (unfair, but true).

ACKNOWLEDGED AND AGREED:

DRIVER:

Signature: _____

Printed Name: _____

CONTRACTOR (if Driver is not the Contractor):

Contractor Name: _____

Signature: _____

REFERENCE NO. _____

AUTHORIZATION TO COLLECT, USE, AND DISCLOSE INFORMATION
(PAYMENT; COMPLIANCE; OPERATIONS)

This Authorization (this "Authorization") is provided by the undersigned ("Signer") to and in favor of the undersigned Company ("Company") and Company's affiliates.

1. AUTHORIZATION. Signer authorizes Company to collect, use, disclose, share, and transfer Signer's personal, financial, and work-related information to Company's affiliates, vendors, and service providers, as reasonably necessary for legitimate business purposes, including onboarding, credentialing, safety/compliance administration, dispatch operations, settlement/payroll processing (as applicable), tax reporting, insurance administration, claims handling, auditing, and related operational functions.

2. INFORMATION COVERED. Information covered by this Authorization may include, as applicable: identification and contact information, Social Security number or taxpayer identification number, banking and payment information, driving credentials (including CDL information), safety/compliance records, logs/ELD-related data provided to Company, employment history provided to Company for onboarding, and other information Signer provides to Company in connection with performing services.

3. RECIPIENTS. Recipients may include Company's affiliates, payroll or settlement processors, tax and accounting providers, insurance brokers/administrators, telematics and ELD providers, credentialing/compliance vendors, and other vendors supporting Company's operations. Company may also disclose information to customers/brokers/consignees and regulators where reasonably necessary to complete a shipment, verify compliance, or satisfy a legal obligation.

4. DURATION; REVOCATION. This Authorization is effective from the date signed and remains effective during Signer's active relationship with Company and for a reasonable period thereafter for audit, tax, and claims purposes, unless revoked earlier in writing. Signer may revoke by written notice to Company; however, Signer understands revocation may prevent Company from onboarding Signer or continuing to utilize Signer in operations requiring the information.

5. ACKNOWLEDGEMENT. Signer acknowledges that Signer has read and understands this Authorization and signs voluntarily.

SIGNER (check one): ☐ Contractor ☐ Driver ☐ Contractor as Driver (same person)

Signature: _____

Printed Name: _____

COMPANY (optional acknowledgement of receipt):

Company Name: _____

By: _____

Name/Title: _____

REFERENCE NO. _____

AUDIO/VIDEO RECORDING AND BIOMETRIC INFORMATION CONSENT

This Audio/Video Recording and Biometric Information Consent (this "Consent") is provided by the undersigned ("Signer") to and in favor of _____ ("Company"). "Signer" may be a Contractor and/or a Driver operating under a Contractor Agreement between Company and the Contractor.

1. DEFINITIONS. For the purposes of this Consent, the following terms shall mean as follows; (a) "Recordings" means audio recordings, video recordings, photographs, and similar media captured by Company or its vendors; (b) "Biometric Data" includes biometric identifiers and biometric information as defined by applicable law (including, for Illinois residents, the Illinois Biometric Information Privacy Act ("BIPA")), such as facial-geometry templates derived from facial recognition features, if enabled; and, (c) "Systems" means Company's or its vendors' cameras, telematics/dash-cam systems, facility cameras, and related software.

2. CONSENT TO VIDEO/AUDIO RECORDINGS. Signer consents to the capture and retention of Recordings when Signer is: (a) at Company premises, terminals, yards, or facilities; (b) at any orientation, seminar, meeting, safety session, or training held by or on behalf of Company; (c) near, accessing, using, or operating Company equipment, trucks/tractors, trailers, devices, or any non-Company equipment used for the benefit of or on behalf of Company; and, (d) when the Signer is communicating with the Company or any Affiliate of the Company.

3. PURPOSES FOR RECORDINGS. Signer agrees Company and its affiliates may use Recordings for legitimate business purposes including safety coaching, compliance with Applicable Law, incident/accident investigation, cargo/security investigation, claims administration and defense, training, auditing, and customer service.

4. CONFIDENTIALITY; DISCLOSURE. Company will treat Recordings as confidential and will not use them for improper purposes. Company may disclose Recordings to its affiliates, insurers, brokers/customers (to the extent necessary), regulators, law enforcement, and service providers/technology vendors as reasonably necessary for the purposes stated above or as required by law.

5. BIOMETRIC DATA. If Company (or its telematics provider) enables "Camera ID" or a similar feature, the System may use facial recognition to assign drivers to vehicles, trips, and safety events and to maintain accurate operational logs. This may involve collection and use of Biometric Data. Company will use Biometric Data solely for: (i) assigning drivers to vehicles/trips/safety events; (ii) improving safety through driver-based insights; and (iii) maintaining accurate operational and compliance logs. Biometric Data will not be sold. Company may share Biometric Data with the System vendor(s) and other service providers solely to provide the enabled feature and maintain the Systems, and may disclose Biometric Data if required by law or valid legal process. Biometric Data will be stored securely (including encryption and access controls) and will be accessible only to authorized personnel and authorized vendor personnel as needed to provide the feature. Biometric Data will be retained only while Signer remains active with Company and/or while the feature remains enabled. Upon termination of Signer's active status or deactivation of the feature, Biometric Data will be permanently deleted within one hundred eighty-four (184) days, unless Applicable Law requires a different retention period. For Illinois residents, Company maintains a written Biometric Information retention and destruction policy, available upon request. By signing, Signer provides the written release required by BIPA for the collection, use, storage, and disclosure of Biometric Data as described in this Consent.

6. WITHDRAWAL OF BIOMETRIC CONSENT. If Signer does not consent to the collection/use/storage of Biometric Data, Signer must submit a written request to Company to deactivate the feature. Company will use reasonable efforts to process the request and allow up to sixty (60) days to complete deactivation. Signer acknowledges that deactivation may limit Company's ability to assign trips or manage compliance/safety features through the Systems.

7. NO EXPECTATION OF PRIVACY. Signer acknowledges that, to the extent permitted by Applicable Law, Signer has no expectation of privacy in areas where Recordings are made under this Consent (excluding restrooms or other areas where recording is legally prohibited).

8. ACKNOWLEDGEMENT. Signer acknowledges that Signer has read and understands this Consent and signs voluntarily.

SIGNER (check one): ☐ Contractor ☐ Driver ☐ Contractor as Driver (same person)

Signature: _____

Printed Name: _____

REFERENCE NO. _____

DRIVER ACKNOWLEDGEMENT AS SUBCONTRACTOR

This Driver Acknowledgement as Subcontractor (this "Acknowledgement") is executed by the undersigned driver ("Driver") in favor of _____ ("Company"), with the undersigned contractor ("Contractor") acknowledging certain terms below.

A. BACKGROUND. Driver acknowledges that Contractor has been engaged by Company to provide trucking and transportation-related services pursuant to a Contractor Agreement (Owner-Operator) dated _____, as amended from time to time in accordance with its terms (the "Contractor Agreement"). Driver has been engaged by Contractor as Contractor's employee and/or independent contractor/subcontractor (as determined solely by Contractor and Driver). Driver will have an employment and/or contractor relationship with Contractor only, based on the terms Contractor and Driver agree. Driver represents and warrants that Contractor has delivered to Driver, and Driver has examined, a copy of: (a) the Contractor Agreement, and (b) all current Company Policies applicable to Driver (collectively, the "Onboarding Materials"). Driver acknowledges that Company Policies may be updated by Company from time to time and agrees to comply with Company Policies as updated, including for safety and regulatory compliance. The Driver agree(s) that it shall perform the Services in accordance with the terms of the Contractor Agreement, and acknowledges and understands that any compensation, fees, or any other amount(s) due to the Driver by the Contractor will be subject to various deductions, chargebacks, and certain fines and penalties set forth in the Schedules referenced in the Contractor Agreement. The Driver further acknowledges and agrees that the Company has the right to amend the Contractor Agreement in accordance with its terms, and it is the Contractor's responsibility to notify the Driver of any changes to the Contractor Agreement.

B. NO EMPLOYMENT; NO PRIVILEGE; COMPENSATION IS CONTRACTOR'S OBLIGATION. Driver acknowledges and agrees that Driver is not, and will not be deemed to be, an employee of Company. Driver will not hold itself out as Company's employee or agent. Driver acknowledges and agrees that Driver is not, and will not be deemed to be, in privity of contract or privity of estate with Company, and Company owes no obligation or duty to Driver under the Contractor Agreement or by reason of Driver's performance of services to or on behalf of Contractor. Any compensation or amounts due to Driver are the sole responsibility and liability of Contractor. Driver agrees that Company is not responsible for any wages, payments, reimbursements, or other amounts allegedly due to Driver. Any rights or remedies Driver may have arising out of Driver's relationship with Contractor will be exercisable solely by Driver against Contractor, and Driver agrees not to proceed directly against Company on account of the Contractor Agreement or Driver's performance of services.

C. RETURN OF PROPERTY; BAILMENT. If for any reason the Contractor Agreement terminates, Company shall not be liable to Driver by reason thereof. Upon termination of the Contractor Agreement, or upon Company's written demand at any time, Driver (to the extent Driver is in possession of or otherwise has control of any property of Company or any equipment subject to the Contractor Agreement or related lease documentation) shall be deemed a bailee of Company's property and shall promptly return such property to a location designated by Company. Driver shall be liable to Company for damage caused to Company property and for failure to return Company property promptly upon demand, ordinary wear and tear excepted.

D. RELEASE OF CLAIMS AGAINST COMPANY. As a material inducement for Company to consent to Driver's engagement by Contractor, Driver, on behalf of Driver and Driver's heirs, executors, administrators, successors, and assigns, hereby releases and forever discharges Company and Company's past, present, and future affiliates, parent companies, subsidiaries, predecessors, successors, and assigns, and each of their respective past, present, and future shareholders, officers, directors, employees, agents, and insurers (collectively, the "Released Parties"), from any and all claims, actions, causes of action, disputes, liabilities, or damages of any kind that Driver has or may have, known or unknown, contingent or liquidated, arising from or relating to Driver's access to Company premises, Driver's use of any equipment while performing services for Contractor, and Driver's performance of services for Contractor in connection with Company's operations. This Release does not apply to rights that cannot be waived as a matter of Applicable Law.

E. DISPUTE RESOLUTION. Except for a request for temporary injunctive relief to preserve the status quo, any dispute, claim, or controversy between Driver and Company (or any Released Party) arising out of or relating to this Acknowledgement, Driver's access to Company premises, Company Policies, or Driver's performance of services in connection with Company's operations (a "Driver Dispute") shall be resolved exclusively by: (a) mandatory mediation administered by JAMS for ninety (90) days, and (b) if not resolved, final and binding arbitration administered by JAMS under the JAMS Expedited Arbitration Rules and Procedures, before one (1) arbitrator, on an individual basis only. Driver Disputes must be brought only on an individual basis. No class, collective, representative, or consolidated proceedings are permitted. The arbitrator has no authority to rule on the enforceability, validity, or scope of the class/collective waiver; that issue may be decided only by a court of competent jurisdiction. Each party shall pay its own attorneys' fees and its own costs and expenses, including its own arbitration-related fees and expenses. No prevailing-party fee shifting applies, except to the extent a non-waivable provision of Applicable Law requires otherwise. To the fullest extent permitted by Applicable Law, any Driver Dispute must be initiated by written notice and a request for mediation to JAMS within one (1) year after the claim accrues, or it is time-barred.

F. ASSIGNMENT BY COMPANY; CONTINUED PERFORMANCE FOR ASSIGNEE. Driver acknowledges and agrees that Company may, at any time and in its sole discretion, assign the Contractor Agreement (in whole or in part), with or without notice to Driver. Upon any such assignment, all of Company's rights and obligations under the Contractor Agreement (or the assigned portion thereof) shall be assigned to and assumed by the assignee, and Driver shall continue to perform Driver's services for the benefit of, and on the account of, such assignee on the same terms and conditions, without any further consent, action, or instrument required from Driver.

[DRAFT FOR REVIEW PURPOSES ONLY; DO NOT USE]

REFERENCE NO. _____

G. DIRECT PAYMENT TO DRIVER. Contractor and Driver acknowledge and agree that, unless Contractor expressly prohibits or instructs Company otherwise in writing, Company may pay any amount(s) due to Contractor with respect to Driver's performance of services directly to Driver. Any such payment by Company directly to Driver shall be deemed to have been made to Contractor on the account of, and for the benefit of, Contractor, and shall fully discharge Company's payment obligation to Contractor for the corresponding amount. Any payment Driver receives from Company in respect of services performed under the Contractor Agreement shall be deemed received for the benefit and account of Contractor.

Driver acknowledges that Driver has had the opportunity to ask questions about this Acknowledgement and to consult independent counsel before signing.

ACKNOWLEDGED AND AGREED BY:

CONTRACTOR: _____ Signature: _____ Print Name: _____	COMPANY: _____ Signature: _____ Print Name: _____
DRIVER: _____ Signature: _____ Print Name: _____	